

PAROLE SUITABILITY HEARING

STATE OF CALIFORNIA

BOARD OF PAROLE HEARINGS

In the matter of the Parole  
Consideration Hearing of:

CDCR Number: **P74172**

**CALVIN WALKER**

CALIFORNIA STATE PRISON, LOS ANGELES COUNTY

LANCASTER, CALIFORNIA

JANUARY 29, 2025

8:32 AM

PANEL PRESENT:

ROBERT BARTON, Presiding Commissioner

JAMES WEILBACHER, Deputy Commissioner

OTHERS PRESENT:

CALVIN WALKER, Incarcerated Person

DAVID STEIN, Deputy District Attorney

ESI BENYARKU, Attorney for Incarcerated Person

UNIDENTIFIED, Correctional Officers

Transcribed by:

Hanin Yaseen

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**PROCEEDINGS**

**DEPUTY COMMISSIONER WEILBACHER:** We are on the record, sir. We're on the record, sir.

**PRESIDING COMMISSIONER BARTON:** Good morning, everyone. I'm Commissioner Barton and we are here for an initial parole consideration hearing for Mr. Walker, CDCR number P, as in Paul, 74172. Today is January 29, 2025. Time is approximately 8:32 a.m. He's located at the, uh, State Prison in Lancaster. The rest of us are joining on Microsoft Teams. For your benefit, Mr. Walker, there will be a recording that is transcribed. You'll be provided a copy of that transcript regardless of the outcome. Commissioner Weilbacher is in charge of that recording. What we're going to do next for the transcription is have everyone give their first name, last name, spelling their last name so we have voice identification. And then Commissioner Weilbacher can check our recording. So, I'm going to start. My name is Robert Barton, B-A-R-T-O-N. I'll be the Presiding Commissioner for your hearing. Next will be the Deputy Commissioner.

**DEPUTY COMMISSIONER WEILBACHER:** My name is James Weilbacher, W-E-I-L-B-A-C-H-E-R. I'm the Deputy Commissioner.

**PRESIDING COMMISSIONER BARTON:** Next will be the representative from San Mateo County.

1           **DEPUTY DISTRICT ATTORNEY STEIN:**       Good morning. My  
2 name is David Stein, S-T-E-I-N, Deputy District Attorney,  
3 San Mateo County.

4           **PRESIDING COMMISSIONER BARTON:**       And could you mute  
5 at this point? There you go. Thank you, Mr. Stein. And  
6 next will be your Attorney, Mr. Walker. Um, she'll go  
7 ahead and identify herself.

8           **ATTORNEY BENYARKU:**   Hi, good morning. My name is Esi  
9 Benyarku. The last name is B, as in boy, E-N-Y-A-R-K-U.  
10 I'm Counsel for Mr. Walker.

11           **PRESIDING COMMISSIONER BARTON:**       All right, and now  
12 you, Mr. Walker. First name, last name, spell your last  
13 name, please.

14           **CALVIN WALKER:** Yes, Calvin Walker, W-A-L-K-E-R.

15           **PRESIDING COMMISSIONER BARTON:**       Thank you, sir.  
16 Uh, did I get your CDCR number correct?

17           **CALVIN WALKER:** Excuse me, yes. My CDCR number P, as  
18 in Paul, 74172.

19           **PRESIDING COMMISSIONER BARTON:**       Yeah, that's what  
20 we have. Commissioner Weilbacher, do you need time to  
21 check or do we have a good recording?

22           **DEPUTY COMMISSIONER WEILBACHER:**       We've got a good  
23 recording, sir. I can simultaneously monitor.

24           **PRESIDING COMMISSIONER BARTON:**       All right. There  
25 also may be Correctional Officers coming in and out, uh,

1 for security and technical assistance there in the room,  
2 Mr. Walker. We won't identify them unless I need to speak  
3 with them.

4 **CALVIN WALKER:** All right.

5 **PRESIDING COMMISSIONER BARTON:** Um, we're going to  
6 take care of some administrative matters first, then I'm  
7 going to explain the process to you before we get started,  
8 okay?

9 **CALVIN WALKER:** Okay.

10 **PRESIDING COMMISSIONER BARTON:** So, I show you're  
11 received by CDCR in 2000 from San Mateo County for a  
12 conviction of second-degree murder with the use of a gun.  
13 And, um, it looks like subsequently or, uh, prior to that,  
14 you had some, uh, drug charges, uh, ex-felon in possession  
15 of a gun, et cetera. It looks like the total term was 40  
16 years to life. The crimes occurred in 1998. Your minimum  
17 eligible parole date, uh, technically is not until 2033,  
18 however you qualify under Penal Code section 3051 for  
19 youth offender consideration, uh, as of 2022, which is why  
20 you were able to come to the Board at this time. I do show  
21 that you waived, um, your hearings previously. Is that  
22 correct?

23 **CALVIN WALKER:** Yes.

24 **PRESIDING COMMISSIONER BARTON:** Okay. As I said,  
25 the hearing is audio recorded. It is a public record. Um,

1 anyone can request it. You'll be getting a copy for free.  
2 At this time, I need to swear you in. If you'd raise your  
3 right hand, please. Do you solemnly swear or affirm any  
4 testimony you give is the truth, the whole truth, and  
5 nothing but the truth?

6 **CALVIN WALKER:** I do.

7 **PRESIDING COMMISSIONER BARTON:** How important do  
8 you think that is? You can put your hand down.

9 **CALVIN WALKER:** I think it's very important.

10 **PRESIDING COMMISSIONER BARTON:** Yes, because in  
11 these hearings, largely we rely on what you tell us. And  
12 if we feel there are credibility issues or minimizing  
13 issues or you're trying to hide something, it makes it  
14 difficult for us to believe other things that you might  
15 say.

16 **CALVIN WALKER:** Okay.

17 **PRESIDING COMMISSIONER BARTON:** So, um, I just  
18 want you to keep that in mind. Some guys come in and they  
19 think, especially in their first hearing, well, I don't  
20 need to tell everything and, you know, maybe I can keep  
21 this back. The problem with that is you don't know what we  
22 do or don't know.

23 **CALVIN WALKER:** Okay.

24 **PRESIDING COMMISSIONER BARTON:** We review your  
25 entire record, including confidentials, including other

1 memos that you may not even be privy to. So, what I  
2 suggest is you be brutally honest regardless of the  
3 outcome. Because, oftentimes, if you set your baseline for  
4 honesty in the first hearing, um, and you're talking like  
5 I'll have guys that will come in and talk about stuff, uh,  
6 and they recognize, okay, that might be considered today,  
7 but if I come back another time and I've got that baseline  
8 for honesty here, my chances would be much better. So, not  
9 because I anticipate you lying to me, I'm just wanting to  
10 let you know that we really do value transparency. So, um,  
11 when we ask you questions, it's going to be in the areas  
12 that we think are risk. In other words, we read your  
13 entire file, all the good things you've been doing, and  
14 you've got a lot of good things going for you the last  
15 couple years. But we'll tend to focus on those areas of  
16 risk because what we have to determine is whether or not  
17 you currently pose an unreasonable risk to public safety.

18 **CALVIN WALKER:** Okay.

19 **PRESIDING COMMISSIONER BARTON:** And so, that  
20 means, you know, that's the area that we have to explore.  
21 So, before we get to that, though, we need to do a couple  
22 other administrative matters. Can you verify your  
23 birthdate for me?

24 **CALVIN WALKER:** Yes. March 31, 1978.

25 **PRESIDING COMMISSIONER BARTON:** Okay. Uh, let's

1 see. So, you would've been 19 or 20 when these crimes  
2 occurred?

3 **CALVIN WALKER:** Yes.

4 **PRESIDING COMMISSIONER BARTON:** And I do show that  
5 you got a GED back in 2002. You've been taking college  
6 courses at Feather River. Is that all correct?

7 **CALVIN WALKER:** Yes.

8 **PRESIDING COMMISSIONER BARTON:** And you have a 9.0  
9 education score, uh, adult basic education score. I don't  
10 know when that test was. I suspect it's probably higher if  
11 you're taking college courses, but no question you know  
12 how to read and write because you submitted several things  
13 to us. Uh, I'm assuming you wrote those yourself?

14 **CALVIN WALKER:** Yes.

15 **PRESIDING COMMISSIONER BARTON:** Okay. Do you have  
16 any problems with your hearing?

17 **CALVIN WALKER:** No.

18 **PRESIDING COMMISSIONER BARTON:** If at any time you  
19 can't hear something, let us know. Just wave your hand and  
20 let us know you can't hear and we'll repeat it or take  
21 care of it if it's a technical issue.

22 **CALVIN WALKER:** Okay.

23 **PRESIDING COMMISSIONER BARTON:** Do you have any  
24 problems walking or sitting?

25 **CALVIN WALKER:** No.



1           **PRESIDING COMMISSIONER BARTON:**       Do you wear any  
2       braces or orthotics, anything like that?

3           **CALVIN WALKER:** No.

4           **PRESIDING COMMISSIONER BARTON:**       Uh, I see you're  
5       wearing glasses. Are those for reading or distance or  
6       both?

7           **CALVIN WALKER:** Well, it is, they're kind of like for,  
8       for both like nearsighted, I have nearsighted issues and  
9       it help me, there's medicine and <inaudible> so to help me  
10      see and protect my eyes from, uh, the sun.

11          **PRESIDING COMMISSIONER BARTON:**       Okay. Um, while  
12      you're wearing them, do they work okay if you had to read  
13      something today?

14          **CALVIN WALKER:** Yes.

15          **PRESIDING COMMISSIONER BARTON:**       Okay. If you need  
16      more magnification, we can get you a magnification, uh,  
17      device that we have in the room there.

18          **CALVIN WALKER:** Perfect.

19          **PRESIDING COMMISSIONER BARTON:**       Uh, let's see  
20      here. It says you're also in CCCMS. Are you taking any  
21      medications?

22          **CALVIN WALKER:** Yes, I do. I have a, I take a as, as,  
23      PRN, as per request, meaning that I was kind of tapering  
24      myself down. So, yes, I do take Vistaril for, to help me  
25      sleep and things like that.

1           **PRESIDING COMMISSIONER BARTON:**       Okay. Well, are  
2 you sleepy today?

3           **CALVIN WALKER:** No, No, I'm not. I'm, I'm, I'm well  
4 rested. I'm a little—

5           **PRESIDING COMMISSIONER BARTON:**       Okay. We just need  
6 to make sure that if you are, I mean, if you are taking  
7 medications, they don't make you unable to understand what  
8 we're doing today.

9           **CALVIN WALKER:** Okay. Yes. No, nothing like that.  
10 Nothing like that.

11          **PRESIDING COMMISSIONER BARTON:**       Okay. Anything  
12 else that would impair your ability to fully participate?

13          **CALVIN WALKER:** Well, nothing, nothing, I don't  
14 believe nothing is that serious. But I did come down with  
15 a real bad cold and I was under the weather yesterday, but  
16 I got most of it out of my system and I may do a little  
17 coughing or something like that. But other than that, I  
18 believe I'm perfectly, uh, fine.

19          **PRESIDING COMMISSIONER BARTON:**       All right, well,  
20 we're in the same boat. I'm getting over one as well, so  
21 if I have to sneeze or cough or something, we'll, uh, give  
22 each other that grace. So, if that happens, that's fine.  
23 Um, but you're sure you're okay to go today?

24          **CALVIN WALKER:** Yes.

25          **PRESIDING COMMISSIONER BARTON:**       Okay. Counsel, are

1 you aware of any other accommodations your client  
2 requires?

3 **ATTORNEY BENYARKU:** No, you've covered everything so  
4 far.

5 **PRESIDING COMMISSIONER BARTON:** All right. Sir,  
6 you've had a notice of hearing rights. Um, do you have any  
7 questions about your rights for today's hearing?

8 **CALVIN WALKER:** No.

9 **PRESIDING COMMISSIONER BARTON:** You had an  
10 interview, it's been two years, uh, with Dr. McKinley,  
11 little over two years, back in September 2022 and, uh,  
12 rated you as a high risk CRA, which I assume is probably  
13 why you waived previous hearings. And then you had an  
14 Olsen Review in September 2024. Have you had a chance to  
15 review that Risk Assessment recently?

16 **CALVIN WALKER:** Yes.

17 **PRESIDING COMMISSIONER BARTON:** All right. And do  
18 you think you were totally honest in that Risk Assessment?

19 **CALVIN WALKER:** Um, not, not, not fully 'cause I, I,  
20 at one point, I really didn't really understand the  
21 process of what was going on and what was being asked of  
22 me.

23 **PRESIDING COMMISSIONER BARTON:** Which part was  
24 that?

25 **CALVIN WALKER:** Well, to explain, you know, certain

1 things that I went through, I felt that I had to be as  
2 upfront as I can, but not knowing where to, where to start  
3 at.

4 **PRESIDING COMMISSIONER BARTON:** Okay. Are you  
5 talking about your social history or are you talking about  
6 your rule violations?

7 **CALVIN WALKER:** My rule violations.

8 **PRESIDING COMMISSIONER BARTON:** Okay. Well, we'll  
9 get to those. Um—

10 **CALVIN WALKER:** Okay.

11 **PRESIDING COMMISSIONER BARTON:** And if something's  
12 different, we'll talk about it. If you, if your—

13 **CALVIN WALKER:** Okay.

14 **PRESIDING COMMISSIONER BARTON:** If your testimony  
15 today is different. Um, I do show you filed, well, we have  
16 61 pages in what we call our 10-day file that has, um,  
17 like I said, several writings from you, remorse letters,  
18 relapse plan, um, insight statement. There's also  
19 certificates, some of which we already had, but the ones  
20 from your Edovo tablet, parenting, domestic violence,  
21 substance use, anger Management. We have your, uh, list of  
22 certificates, but most of those we had in your Central  
23 File already. We have—

24 **CALVIN WALKER:** Okay.

25 **PRESIDING COMMISSIONER BARTON:** Um, new documents

1 that came in yesterday, several new documents that came in  
2 yesterday, including your Franklin memo and report, a  
3 support letter from a Ms. Atkins. Who's Ms. Atkins?

4 **CALVIN WALKER:** She is my, Ms. Atkins is my current,  
5 uh, fiancé.

6 **PRESIDING COMMISSIONER BARTON:** Oh, 'cause she  
7 doesn't say that in the letter, she just says she's known  
8 you for a while.

9 **CALVIN WALKER:** Yes, yes. We got back into each  
10 other's life and now that, after this process, we intend  
11 to be like married, but as of now, she's like, we're real  
12 close. And I, I don't understand why she wouldn't, uh,  
13 address that. But yes, that's my fiancé.

14 **PRESIDING COMMISSIONER BARTON:** Well, did you read  
15 her letter?

16 **CALVIN WALKER:** No, I, I didn't. I, I haven't gotten  
17 it yet. She had sent it to the, at the same time she sent  
18 it to the BPH office, she sent it to me, but I haven't  
19 received none of the stuff that she sent me.

20 **PRESIDING COMMISSIONER BARTON:** Okay. Well, we did  
21 get it. Um, and what, I mean, it's a, it's a support  
22 letter, no question. But it didn't really, I have a  
23 question who is she? 'Cause it's just, she just describes  
24 herself as a friend, so I would, that's why I was curious.  
25 But, um, we'll get to that when and if it becomes

1 relevant. Um, okay. We also have some more ACCI  
2 certificates. Those are correspondence courses. We have a  
3 support letter from your sibling. Uh, is it Ladale?

4 **CALVIN WALKER:** Yes, that's my brother.

5 **PRESIDING COMMISSIONER BARTON:** Okay. Did you see  
6 that letter?

7 **CALVIN WALKER:** Yes, he sent me a copy of that as  
8 well.

9 **PRESIDING COMMISSIONER BARTON:** Okay. All right.  
10 And then we have your recent, uh, alternatives to violence  
11 certificates, uh, your LTOP criminal thinking, some more  
12 Edovo certificates. Why did you submit the three-page  
13 CLETS report?

14 **CALVIN WALKER:** I don't understand. What's—

15 **PRESIDING COMMISSIONER BARTON:** Well, there's a  
16 RAP sheet that-- did you submit that, Ms. Benyarku?

17 **ATTORNEY BENYARKU:** Um, uh, he had a, an Attorney  
18 forward his other, I guess his Franklin Attorney. And I  
19 forwarded that email that he sent me. Um, when I tried to  
20 like delete certain documents of it, they said I, for some  
21 reason when I try to just send the documents as an  
22 attachment, they're saying it, it came out as links. So, I  
23 just forwarded what the Attorney said—

24 **PRESIDING COMMISSIONER BARTON:** Okay.

25 **ATTORNEY BENYARKU:** And for some reason, they

1 received it that way.

2 **PRESIDING COMMISSIONER BARTON:** All right. Well, I  
3 just, I mean that's just curious that we would get that  
4 from, um, from any Counsel, but it doesn't matter. We  
5 already have his record, but that was, I was just curious  
6 if there was a particular purpose, if he was challenging  
7 one of his priors or something like that. But, um, all  
8 right. So, was there anything new being submitted today?

9 **ATTORNEY BENYARKU:** Not from me. Uh, Mr. Walker, I'm  
10 not sure if he had additional documents that you wanted--  
11 I think we've gotten everything.

12 **CALVIN WALKER:** Yes. Well, I, I did, I had just  
13 received a, um, another letter here from Homeboy  
14 Industries that did, that I just got yesterday, um, like  
15 a, you know, support letter and it offer me assistance in,  
16 like they got housing and job, placements and job  
17 resources and stuff for me. But I just received it  
18 yesterday so I didn't have time to submit it. But--

19 **PRESIDING COMMISSIONER BARTON:** That's fine. You  
20 can tell us you've got it. We can believe you. I've, I'm  
21 very familiar with that, Homeboy Industries. I've met  
22 Father Boyle. I've been to their facility. So, did you  
23 have an opportunity to speak with your Attorney before we  
24 got started today?

25 **CALVIN WALKER:** Yes.

1           **PRESIDING COMMISSIONER BARTON:**       Okay. During the  
2 hearing, at any time if you or she want to take a break,  
3 uh, we'd have to put her on the phone with you, but, um,  
4 you're entitled to have a confidential discussion with her  
5 if you feel that's necessary or if she feels that  
6 necessary, okay?

7           **CALVIN WALKER:** Okay.

8           **PRESIDING COMMISSIONER BARTON:**       And since this is  
9 your first hearing, I'll explain the process, what will,  
10 um, I'll start off talking to you about your social  
11 history, what was going on in your life before the crime,  
12 what happened during the crime, what you've been doing  
13 since the crime. And then I'll turn it over to the Deputy  
14 Commissioner to follow up on any areas that he feels still  
15 need following up on. And then when we're done questioning  
16 you, we'll give the Attorneys an opportunity for what are  
17 called clarifying questions. It's not retrying your case.  
18 It's basically, um, if they felt that there was something  
19 raised, uh, that they wanted to clarify that would help us  
20 make our decision, or if there was something that wasn't  
21 raised at all that they, uh, think would be relevant to us  
22 making our decision. And then after those questions, each  
23 of them will give a closing statement regarding your  
24 suitability. You'll be allowed to give a closing statement  
25 if you choose. You're not required to. And then we'll take



1 a break, we'll deliberate on your case, we'll come back  
2 with a decision. It can be a grant or a denial. If it's a  
3 grant, there's a review process by the Governor and by the  
4 Board.

5 **CALVIN WALKER:** Okay.

6 **PRESIDING COMMISSIONER BARTON:** If there's a, um,  
7 a denial, it can be anywhere from 15 years to three years,  
8 depending on what we think you still need to do, okay?

9 **CALVIN WALKER:** Yes.

10 **PRESIDING COMMISSIONER BARTON:** All right. Any  
11 questions about the process as I've just explained it to  
12 you?

13 **CALVIN WALKER:** No.

14 **PRESIDING COMMISSIONER BARTON:** All right. So, let  
15 me start off with, um, in the Risk Assessment and due to  
16 your youth offender status, um, I'm going to sort of  
17 summarize your childhood, but I would, I think it's an  
18 understatement to characterize it as dysfunctional, right?

19 **CALVIN WALKER:** Yes.

20 **PRESIDING COMMISSIONER BARTON:** Your mom was an  
21 addict. Your dad left at age four. There was abuse,  
22 poverty, crime, substances, you dropped out of school. You  
23 were in and out of juvenile hall. You started early with  
24 thefts, fights, truancy, um, burglaries, auto theft, uh, a  
25 robbery in '94, drug sales in '96. Um, more thefts in '96,

1 and then '98, another drug charge. You were released in  
2 March and then committed this murder in May, correct?

3 **CALVIN WALKER:** Yes.

4 **PRESIDING COMMISSIONER BARTON:** So, did you have  
5 any plan for your life when you were 18?

6 **CALVIN WALKER:** No, I didn't have no plans at all.

7 **PRESIDING COMMISSIONER BARTON:** <Inaudible> you  
8 going to die or go to prison?

9 **CALVIN WALKER:** I, I, I didn't have no sense of  
10 direction or no sense of responsibility or, no, I didn't  
11 know who I was, so I was lost.

12 **PRESIDING COMMISSIONER BARTON:** Okay. Well, as far  
13 as your dropping out of school, you said that you did okay  
14 in school. Did you ever think about going back to school?

15 **CALVIN WALKER:** Yes, yes, I, I have, I did. And that's  
16 why I've been, enrolled in college courses as I am today.

17 **PRESIDING COMMISSIONER BARTON:** Okay. Who do you  
18 think was your main, um, influence as a teenager?

19 **CALVIN WALKER:** Well, I think my main influence was on  
20 the streets or older peers.

21 **PRESIDING COMMISSIONER BARTON:** Okay.

22 **CALVIN WALKER:** It was my mother, my, my mother, my  
23 father. And then on the street, the older peers.

24 **PRESIDING COMMISSIONER BARTON:** Well, when you  
25 sold drugs, what were you doing with the money?

1           **CALVIN WALKER:** Well, it was basically to survive, to  
2 eat, to continue my habits, but to eat and appease, you  
3 know, the streets as approval. So, I was in a gang bang  
4 criminal lifestyle mentality. So, everything I did was for  
5 the acceptance and approval of that.

6           **PRESIDING COMMISSIONER BARTON:**       Well, when did you  
7 start using drugs?

8           **CALVIN WALKER:** Well, when I was around 17.

9           **PRESIDING COMMISSIONER BARTON:**       Okay. What about  
10 cocaine?

11          **CALVIN WALKER:** Let me take that back. Excuse me. Let  
12 me take that back. Only because I started smoking  
13 marijuana when I was like around 13 and younger. And then  
14 as I progressed, older, when I got older, around 17, I  
15 started, you know, using cocaine.

16          **PRESIDING COMMISSIONER BARTON:**       Why?

17          **CALVIN WALKER:** Well, to keep me up and keep me alert  
18 while I'm out in the streets staying up in the cold while  
19 I'm selling drugs.

20          **PRESIDING COMMISSIONER BARTON:**       Well, did it do  
21 anything else for you?

22          **CALVIN WALKER:** Well, it helps me cope somewhat. It  
23 was also for a coping mechanism. It helped me cope and not  
24 worry about the problems, kind of numbed me up, made me  
25 not worry about the <inaudible>, the pain that I was going

1 through, that I was experiencing. Yes, it did that as well  
2 too.

3 **PRESIDING COMMISSIONER BARTON:** Okay. What about  
4 alcohol? Did you drink before you came to prison?

5 **CALVIN WALKER:** Yes. I, I did drink. I did drink. I  
6 wasn't much of a drinker because I didn't really like the  
7 taste of it, but yes, I did drink.

8 **PRESIDING COMMISSIONER BARTON:** Yeah. And it  
9 doesn't have you listed as, uh, being an alcoholic, but,  
10 obviously, the crack cocaine is habitual. When's the last  
11 time you used any alcohol?

12 **CALVIN WALKER:** Uh, I've been using the alcohol since,  
13 I'd say maybe 2016, 2016. Yeah, that's—

14 **PRESIDING COMMISSIONER BARTON:** And that's the one  
15 you got caught with the Pruno or whatever it was? White  
16 Light?

17 **CALVIN WALKER:** Yes, yes, yes.

18 **PRESIDING COMMISSIONER BARTON:** Okay. What about  
19 other drugs like marijuana in prison?

20 **CALVIN WALKER:** Um, maybe, uh, I believe it maybe 2015  
21 or 2016. Like all, everything was around that, around that  
22 time. I was still confused, still going through things and  
23 still running away and being in denial. And so, I believe  
24 the last time I did use marijuana was in either 2015 or  
25 2016. I'm not exactly sure. I believe it was 2016, though.

1           **PRESIDING COMMISSIONER BARTON:**       So, you don't have  
2 a set clean and sober date?

3           **CALVIN WALKER:** But my guess, my closest, my clean and  
4 sober date and when I actually stopped using anything was  
5 in November, around November 20, 2016.

6           **PRESIDING COMMISSIONER BARTON:**       And how do you  
7 remember that date?

8           **CALVIN WALKER:** Because I had just recently been in  
9 the hole. I got in, at Solano. I had called a distribution  
10 for drugs in, uh, I believe September, 2016. And I was in  
11 the hole. And I got to looking at my life, like everything  
12 that I'm doing, and it's still the same cycle, the same  
13 cycle. And I figured I had to do something different. And  
14 I started to realize that one of the causes was, it was  
15 my, my drug use or the fact that I, okay, I felt okay with  
16 using drugs to run away from my issues and my problems and  
17 not face them.

18           **PRESIDING COMMISSIONER BARTON:**       Okay. Well, were  
19 you using meth or heroin? That's the stuff you were  
20 selling, right?

21           **CALVIN WALKER:** Yeah, but no, I, I wasn't using that  
22 stuff. Uh, 'cause I, I figured if I don't use, I sell  
23 something that I don't use. So, at the time that I was  
24 doing that, I wasn't using heroin or, or methamphetamine.

25           **PRESIDING COMMISSIONER BARTON:**       What were you

1 using that money for?

2 **CALVIN WALKER:** Well, just to take care of myself, but  
3 I understand now that it was going to much more, you know,  
4 sinister things, but that money was to physically support  
5 myself.

6 **PRESIDING COMMISSIONER BARTON:** Yeah. The drugs  
7 just don't show up in prison, right? Sometimes they get in  
8 through people being extorted or threatened and then  
9 there's a lot of violence behind that, right? And-

10 **CALVIN WALKER:** Yes, and I understand that, you know,  
11 people that I put in danger and I could have hurt and  
12 could have caused by my continuing selling drugs or  
13 dealing with drugs not only for the people who I was  
14 selling to, but the organizations who I was contributing  
15 to that was, that had the impact of, could have hurt  
16 somebody else or somebody else overdosing or whatever it  
17 could have been. Yes, I, I do realize my responsibility in  
18 that.

19 **PRESIDING COMMISSIONER BARTON:** Well, you'd  
20 already killed somebody in a drug deal gone bad. Isn't  
21 that why you shot Mr. Chang?

22 **CALVIN WALKER:** Yes.

23 **PRESIDING COMMISSIONER BARTON:** So, I would think  
24 you had that knowledge coming into prison. So, why change  
25 in 2016?

1       **CALVIN WALKER:** Because I started becoming more self-  
2 aware and started looking at my life and seeing it like  
3 the same thing. The reason why I'm in here, I'm still  
4 doing the same thing that I'm doing and I would never get  
5 out of here if I continue this. So, it was a, it started  
6 to get to me, it started to open my eyes where I started,  
7 you know, thinking enough is enough.

8       **PRESIDING COMMISSIONER BARTON:**       So, when do you  
9 think you started recovery work?

10       **CALVIN WALKER:** Well, it took me a little time after  
11 that, even though I was participating in groups, I kind of  
12 started maybe around 2021, I really started taking things  
13 more seriously and it really started getting me. I started  
14 getting mature. I started getting, being able to  
15 understand my causative factors and the reason why I was  
16 doing the things that I was doing and have done and  
17 continue to do.

18       **PRESIDING COMMISSIONER BARTON:**       Well, see, here's  
19 the problem. I don't know if it's a problem, but it's  
20 something we have to consider is the youth offender  
21 factors recognize that you were stupid, impulsive, and  
22 came from a dysfunctional childhood when you committed  
23 your original crime, but you were selling drugs well into  
24 your thirties.

25       **CALVIN WALKER:** Yes.

1           **PRESIDING COMMISSIONER BARTON:**       So, you could no  
2 longer blame that on a, on a brain that hadn't matured  
3 yet. You knew what you were doing was wrong and you were  
4 choosing to do it, right?

5           **CALVIN WALKER:** Yes, because I had a criminal  
6 addictive—

7           **PRESIDING COMMISSIONER BARTON:**       You did what?

8           **CALVIN WALKER:** Mentality. I had a criminal addictive  
9 mentality that I hadn't addressed. This, I felt that this  
10 was something that I have, was impulsive to do. And so, I  
11 haven't addressed them issues yet at that time. So, I  
12 still was stuck in that, that mind frame.

13          **PRESIDING COMMISSIONER BARTON:**       Yeah, you've got  
14 like 200 pages of rule violations all the way up through  
15 2021, right?

16          **CALVIN WALKER:** Yes.

17          **PRESIDING COMMISSIONER BARTON:**       I mean, you had  
18 the, why do you, why do you skip so many medical  
19 appointments?

20          **CALVIN WALKER:** Well, I was, I was going to, it was a  
21 big thing about my blood pressure and they were, they  
22 were, you know, um, talking about my blood pressure. My  
23 blood pressure was high, it was always high. So, I, I, I  
24 had asked them to, I wanted to get my weight down, and be  
25 able to get my weight down so I can get my weight down and



1 then get the test as I needed, as I worked on myself to  
2 get myself down so that I wouldn't be so stressed out  
3 about my blood pressure.

4 **PRESIDING COMMISSIONER BARTON:** Okay. But I mean,  
5 why skip the appointments? And I, don't get me wrong,  
6 skipping one appointment's not a big deal. Um, but when I  
7 see somebody who has, I'll call it entitlement issues, and  
8 then they blow off a bunch of appointments over, over the  
9 last five years, you skip like five or six of them, um,  
10 and you just basically go, oh, I'm not going. Um, is that  
11 something that you think about doing or is that something  
12 that you just don't care about? Or is it just a onetime  
13 thing you didn't want to go and get more blood pressure  
14 medicine or what?

15 **CALVIN WALKER:** Yes, that's, that's what it was. I  
16 didn't want to get any more blood pressure medicine. And  
17 every time that I had went to them, they were, you know,  
18 going crazy about my blood pressure was high and  
19 hypertension and I, I didn't want to take the medication.  
20 I wanted to get my weight down normally first and then see  
21 how that was affecting me.

22 **PRESIDING COMMISSIONER BARTON:** Okay. Well, it's  
23 fair to say that, um, when you came to prison, you  
24 certainly didn't follow the rules. In the 2000s, you got a  
25 bunch of write-ups, and 2018, you refused housing, failure

1 to present for count, disobeying orders, um, multiple  
2 cellphones, two in 2016, two in 2018, one in 2019. What's  
3 up with the cellphones?

4 **CALVIN WALKER:** Well, I was still calling that, you  
5 know, addictive, addictive, you know, behavior and cycle  
6 where I felt that, you know, it was a, they were trying to  
7 prove that I was addicted, addicted to porn and, you know,  
8 just to be honest, I's addicted to porn. And-

9 **PRESIDING COMMISSIONER BARTON:** Did you using the  
10 phones to sell drugs too or work on that, though?

11 **CALVIN WALKER:** Yes, I, I was going to get to that  
12 too. I was going to get to that. Uh, addicted to porn and  
13 also, you know, using, continue to sell drugs, check, you  
14 know, drug sales, check, making sure money gets to where  
15 it was supposed to go and things like that. So, yes.

16 **PRESIDING COMMISSIONER BARTON:** So, that's one of  
17 the things you didn't admit in the Risk Assessment.

18 **CALVIN WALKER:** Yes.

19 **PRESIDING COMMISSIONER BARTON:** I appreciate you  
20 admitting it today 'cause I, I knew that was happening  
21 anyway. I mean, when I see somebody with drug sales and  
22 cellphones, those things do not happen separate from one  
23 another.

24 **CALVIN WALKER:** Yes.

25 **PRESIDING COMMISSIONER BARTON:** Were you talking

1 to Ms. Atkins?

2 **CALVIN WALKER:** No, I wasn't talking to Ms. Atkins  
3 then.

4 **PRESIDING COMMISSIONER BARTON:** When did you start  
5 the relationship back with her?

6 **CALVIN WALKER:** I started the relationship back with  
7 her currently fairly recently, maybe not even, not even  
8 six months ago.

9 **PRESIDING COMMISSIONER BARTON:** And you're already  
10 a fiancé?

11 **CALVIN WALKER:** Yes. Well, we had previous dealings  
12 in, it was like me, as a change in my life and things I'm  
13 going through, I looked at who was important to me and  
14 made me feel that, you know, that sense of comfort and  
15 that sense of, of genuine love and it was, she, she was  
16 the one. I just called her one time and, you know, I was  
17 trying to, it was in my recovery where I wanted to, you  
18 know, some of the people who I did wrong or felt I did  
19 wrong, I wanted to call and apologize. And upon me doing  
20 that, it's like we, she said I was a different person and  
21 we rekindled our relationship up from then.

22 **PRESIDING COMMISSIONER BARTON:** So, what's your,  
23 um, what examples have you had of healthy relationships?

24 **CALVIN WALKER:** I haven't had any—

25 **PRESIDING COMMISSIONER BARTON:** I didn't think so.

1           **CALVIN WALKER:** To be honest. I, I haven't had any.

2           **PRESIDING COMMISSIONER BARTON:**       So, do you think  
3   it's healthy to jump into a relationship with someone  
4   after reconnecting in only six months where you can only,  
5   you know, talk on the phone and have prison visits?

6           **CALVIN WALKER:** Well, I mean, not necessarily, but I  
7   believe that where we at in our minds in maturity and we  
8   want the best for each other, that we do the best for each  
9   other. And just the things that she's been through in her  
10   life we can relate to. And the things that I have been  
11   through, she relate to as being a recovering addict and  
12   things of that nature. We really felt our bond  
13   strengthened through that.

14          **PRESIDING COMMISSIONER BARTON:**       Have you done any,  
15   have you done any studies on codependency? Do you know  
16   what that is?

17          **CALVIN WALKER:** Yes.

18          **PRESIDING COMMISSIONER BARTON:**       What is—

19          **CALVIN WALKER:** Depending on somebody else's as, such  
20   as relationships to, you know, being reliant on another  
21   person.

22          **PRESIDING COMMISSIONER BARTON:**       Not necessarily.  
23   There's a lot more to it than that. I would just caution  
24   you that you might want to look into that, especially  
25   people with addictive past. There's nothing wrong with,

1 you know, marrying someone, but codependency goes a lot  
2 further than that. And you certainly would be at risk for  
3 that, especially based on what you just described, the  
4 reasons for you wanting to get in that relationship.  
5 You've got to figure out who you are first before you have  
6 other people create who you are. So-

7 **CALVIN WALKER:** Yes.

8 **PRESIDING COMMISSIONER BARTON:** At any rate, that,  
9 that's not our biggest concern. You don't, you weren't old  
10 enough to really be in many relationships. I doubt you  
11 treated women very well because that gang, drug, criminal  
12 lifestyle certainly wasn't, uh, respectful of women, was  
13 it?

14 **CALVIN WALKER:** No, not at all.

15 **PRESIDING COMMISSIONER BARTON:** Yeah.

16 **CALVIN WALKER:** I didn't know how to respect myself,  
17 let alone respect anyone else.

18 **PRESIDING COMMISSIONER BARTON:** Right.

19 **CALVIN WALKER:** So, yes, that's, that's an accurate  
20 statement.

21 **PRESIDING COMMISSIONER BARTON:** So, let's go back  
22 to the commitment offense. You said you've been carrying a  
23 gun for a long time, right?

24 **CALVIN WALKER:** Yes.

25 **PRESIDING COMMISSIONER BARTON:** And had you ever

1 shot anyone before that?

2 **CALVIN WALKER:** No, I haven't. I don't believe-- I, I,  
3 I would have, but I don't believe I had to-- be put in  
4 that situation, I have pulled it out and maybe intimidated  
5 some people with it, yes.

6 **PRESIDING COMMISSIONER BARTON:** Okay.

7 **CALVIN WALKER:** But I never had to shoot anyone at  
8 that point in time, no. I believe if it wouldn't have  
9 happened to Daniel Chang, it would've happened to  
10 somebody.

11 **PRESIDING COMMISSIONER BARTON:** Well, I did too,  
12 but, so why did you shoot him?

13 **CALVIN WALKER:** I shot Danny Chang 'cause I was a  
14 killer, a criminal minded, impulsive. And I felt, you  
15 know, I was scared. I felt challenged and I was a, uh, uh,  
16 I had the gun on me for anybody who challenged me or  
17 anybody who I felt that was trying to challenge me in any  
18 way that I would, I would kill him. Well, I, I, I, I--

19 **PRESIDING COMMISSIONER BARTON:** But how did he  
20 challenge you? He didn't pay you, he did fumble around for  
21 the money? He didn't get it to you fast enough?

22 **CALVIN WALKER:** Well, no, I, I, well, it was the, the  
23 witness that was there yelled out gaffle, and gaffle is a  
24 street term to us means like, somebody's trying to cheat  
25 you out of drugs or cheat you out of drugs or steal your

1 drugs. So, when that was yelled out, that had kind of  
2 triggered me. And that's when I pulled out, you know, a  
3 firearm, the illegal firearm that I had. And I pointed it  
4 at Daniel Chang, which, you know, I, I can imagine how  
5 fear or, you know, he felt with seeing a gun jamming,  
6 pointed in his face.

7 **PRESIDING COMMISSIONER BARTON:** But why pull the  
8 trigger? Why not just do, like you said before, intimidate  
9 him into paying you?

10 **CALVIN WALKER:** Because I, I, I felt I wanted to,  
11 prove my status, the status of, my status in the street,  
12 my, you know, approval, acceptance in the street. I  
13 couldn't, I felt that at that time that I couldn't, you  
14 know, go with somebody trying to rob me for drugs and  
15 steal drugs from me and that go around to be said to my  
16 peers that I accepted that to happen.

17 **PRESIDING COMMISSIONER BARTON:** Okay. Well, one of  
18 the things in your interview with the clinician that I  
19 think concerned them was you minimized the shooting, made  
20 it sound like an accident, like the gun just went off.

21 **CALVIN WALKER:** Yeah, no—

22 **PRESIDING COMMISSIONER BARTON:** You remember that?

23 **CALVIN WALKER:** Yes.

24 **PRESIDING COMMISSIONER BARTON:** That wasn't true,  
25 was it?

1           **CALVIN WALKER:** No, that wasn't true at all. I, I was  
2 minimizing at that time, not understanding and taking full  
3 responsibility for my actions. But as I'm here and sit  
4 here today, I take full responsibility of my, of my  
5 actions because I was, I had illegal firearm, I was  
6 selling drugs and I pulled the gun out and like I said, I  
7 pointed it at him. So, if I pulled the gun out and pointed  
8 at him, I didn't have no, no mind to just intimidate him.  
9 That day, I had—

10           **PRESIDING COMMISSIONER BARTON:**       Well, and the  
11 trigger doesn't pull itself.

12           **CALVIN WALKER:** No, no, absolutely not, absolutely  
13 not. I had my hand around the trigger and I did pull the  
14 trigger and murder Daniel Chang. I take full  
15 responsibility for my actions.

16           **PRESIDING COMMISSIONER BARTON:**       Well, I appreciate  
17 that today. Um, in 2022, why couldn't you admit that?

18           **CALVIN WALKER:** I couldn't admit that in 2022 because  
19 I still was in my, I was still in denial. I still was in  
20 denial and not being honest with myself and still  
21 struggling with, you know, confronting myself. I, I, I, I  
22 was still struggling with that, with confronting myself  
23 and confronting, confronting my errors. And then as I  
24 reflected and continued taking other classes, like  
25 <inaudible> responsibility and emotional intelligence and



1 even substance abuse told me how to be honest, I got to be  
2 honest with myself first in order to be honest with  
3 anything. And once I be able to do that and stop denial  
4 and stop living in denial, I can be able to confront the  
5 truth and fix it.

6 **PRESIDING COMMISSIONER BARTON:** Well, because for  
7 us, the problem is if you give yourself a pass and you  
8 don't admit that you were willing to kill, then it would  
9 be very easy for you in the future to justify, oh, I  
10 didn't really mean to kill anybody. I'm not really  
11 somebody who killed somebody, you know, in cold blood. So,  
12 you know, maybe I can carry a gun again, or maybe I can do  
13 this or that again. And that would be dangerous, right?

14 **CALVIN WALKER:** Yes, yes, most certainly it would,  
15 yes. Well, no, I understand that now.

16 **PRESIDING COMMISSIONER BARTON:** So, so you said  
17 you started to, um, program in 2021?

18 **CALVIN WALKER:** Yes.

19 **PRESIDING COMMISSIONER BARTON:** And what has been  
20 your program that's been most impactful as far as you  
21 staying off of drugs and out of crime?

22 **CALVIN WALKER:** Well, mostly impactful for me is, you  
23 know, self-help groups. You know, self-help groups—

24 **PRESIDING COMMISSIONER BARTON:** Which one?

25 **CALVIN WALKER:** Well, most things it got to do with

1 anger management. Anger management is real important to me  
2 because I understand that everything that I tied to was  
3 dealing with involving anger. That's what—

4 **PRESIDING COMMISSIONER BARTON:** Anger at who?

5 **CALVIN WALKER:** Angry, angry at really myself.

6 **PRESIDING COMMISSIONER BARTON:** Okay, well, that's  
7 a little different. Self-anger is a little different than  
8 anger—

9 **CALVIN WALKER:** <Inaudible> my family, it was, you  
10 know, to my family, my mother. But at the end, it was, I,  
11 I come to realize now it was myself, but the anger was  
12 really towards my family and the things that I've been  
13 through, unable to protect my mom and just the things that  
14 happened. It was just misplaced anger and I came to find  
15 out it was—

16 **PRESIDING COMMISSIONER BARTON:** Well, so, let's  
17 unpack that 'cause you've described three different  
18 things.

19 **CALVIN WALKER:** Yes.

20 **PRESIDING COMMISSIONER BARTON:** There's a  
21 difference. Being angry at the world for your  
22 circumstances, understandable given how you were raised.  
23 Being angry at yourself because either you felt like you  
24 could be somebody different or you should be somebody  
25 different or whatever is different than taking anger

1 management class to avoid confrontation. Anger at  
2 yourself, that's more likely dealt with in something with  
3 emotional intelligence or childhood trauma or something  
4 along a group like that.

5 **CALVIN WALKER:** Yes.

6 **PRESIDING COMMISSIONER BARTON:** The only group  
7 anger management really, I mean the only, the third one  
8 that kind of anger, anger management targets is being  
9 angry at someone 'cause they disrespect you like Mr.  
10 Chang—

11 **CALVIN WALKER:** Yes.

12 **PRESIDING COMMISSIONER BARTON:** Or somebody that  
13 calls you a name or somebody that challenges you. Because  
14 I'm looking at your record here. And as far as your, uh,  
15 time in prison, you have some disrespect issues where you  
16 get into it with people and make comments that I would  
17 consider, um, verbal escalation. Do you know what that is?

18 **CALVIN WALKER:** Yes.

19 **PRESIDING COMMISSIONER BARTON:** What is it?

20 **CALVIN WALKER:** Well, to me, it is believing that I,  
21 the words I use escalate the circumstances.

22 **PRESIDING COMMISSIONER BARTON:** Like what? What,  
23 what, what—

24 **CALVIN WALKER:** To, to violence, to, to violence.  
25 Escalate them to violence. Escalate them to-- well, mostly

1 I say to violence, to, to, to violence or escalate them to  
2 another level of disrespect, violence and the intent to  
3 commit violence.

4 **PRESIDING COMMISSIONER BARTON:** Okay, well, it  
5 goes deeper than that. So, there's different ways you can  
6 verbally escalate. Words is certainly one of them, right?

7 **CALVIN WALKER:** Yes.

8 **PRESIDING COMMISSIONER BARTON:** If somebody gets  
9 in your face and starts insulting you, would that get you  
10 upset?

11 **CALVIN WALKER:** Well, then, it would've. Now, uh, I  
12 wouldn't allow it to, to bother me to get me upset now  
13 because I understand what it stemmed from. I understand  
14 how to control myself and I got tools and coping  
15 mechanisms in place that I didn't really take serious of  
16 that I live by now to prevent me from even getting put in  
17 this situation and circumstances and how to deal with it  
18 if it does happen.

19 **PRESIDING COMMISSIONER BARTON:** Well, what about,  
20 um, cursing at people?

21 **CALVIN WALKER:** Well, yes.

22 **PRESIDING COMMISSIONER BARTON:** Yeah. So, you've  
23 done that before?

24 **CALVIN WALKER:** Yes.

25 **PRESIDING COMMISSIONER BARTON:** Okay. Um, what

1 about raising the volume of what, the level or tone that  
2 you're speaking?

3 **CALVIN WALKER:** Yes. Well, uh, you know, and I didn't  
4 really, you know, never really realized or wasn't aware of  
5 it of how that can escalate any situation by the tone of  
6 my voice or the aggressiveness in my behavior or the  
7 aggressiveness in my approach.

8 **PRESIDING COMMISSIONER BARTON:** Well, and the  
9 reason I'm asking you if you recognize these things,  
10 because in the past, certainly in some of these things in  
11 2018, 2019, some of these write-ups, you were guilty of  
12 that, right?

13 **CALVIN WALKER:** Yes. Yes, I was. I was, yes. Yes, I  
14 was, I would take full responsibility for my behavior back  
15 then 'cause I was, I, I didn't, I didn't, I was lost. I  
16 was still, I wasn't in full of my recovery, but I was  
17 still lost and yeah, I, I I demonstrated a lot of bad  
18 decisions and a lot of unnecessary irresponsible behavior.

19 **PRESIDING COMMISSIONER BARTON:** Yeah. Because if  
20 you start f you-ing people or you raise your voice, or  
21 like you said, you make threats, um, all of those things  
22 can escalate a situation potentially to violence, right?

23 **CALVIN WALKER:** Yes.

24 **PRESIDING COMMISSIONER BARTON:** So, when's the  
25 last time you had to catch yourself doing that?

1           **CALVIN WALKER:** Last time I had to catch myself doing  
2     that, um, I would say honestly, I, I no longer, you know,  
3     struggle with that. I haven't had that-- I get angry. Yes,  
4     I do get angry. I'm not going to sit here and not be  
5     honest, I get angry, but I know how to deal with it now  
6     than before. So, I don't allow myself to not even be in  
7     those situations. But now I know how to conduct myself in  
8     those situations by not taking things personal and not  
9     letting it get to me. And knowing like, thinking about the  
10    other person, like what he could be going through in his  
11    life or why he's feeling this way. And so, with that--

12           **PRESIDING COMMISSIONER BARTON:**       What was the deal  
13    between you and Officer Assad in 2020?

14           **CALVIN WALKER:** In 2020? Um, I believe I, I, I, I, I  
15    just got angry. I was a, a worker. I was a, a, a, a worker  
16    and she didn't let me out, I believe, for a shower or to  
17    come out, I believe she was there. And I, I, I became  
18    angry. I did, I did become angry at her and to try to get  
19    her attention and, and acted out, I was yelling through  
20    the door and I got angry and couldn't control myself. And  
21    I, I, I yelled out obscenities to her.

22           **PRESIDING COMMISSIONER BARTON:**       Yeah, f-you, you  
23    stupid bitch, I don't give an f, et cetera, et cetera. Um,  
24    did you end up getting fired from the kitchen?

25           **CALVIN WALKER:** Yes. I, I ended up getting fired from

1 the kitchen, yes.

2 **PRESIDING COMMISSIONER BARTON:** It looks like you  
3 had a lot of problems there. You were, um, you burned some  
4 stuff, you stole some syrup. You were doing something in  
5 the restroom with a stinger. What was that?

6 **CALVIN WALKER:** Well, a stinger is, is, is-

7 **PRESIDING COMMISSIONER BARTON:** No, I know what a  
8 stinger is.

9 **CALVIN WALKER:** Okay.

10 **PRESIDING COMMISSIONER BARTON:** What were you  
11 doing with it in the bathroom?

12 **CALVIN WALKER:** Oh, I was, well, I was in the  
13 bathroom. I was lighting an instant and I was trying to  
14 use the, use the, the bathroom. So, I didn't want it to be  
15 stinking in there. So, yeah, it was like a lighter to  
16 light an instant.

17 **PRESIDING COMMISSIONER BARTON:** So, what was the  
18 potential danger of that?

19 **CALVIN WALKER:** Well, the potential danger of that was  
20 the fact that for one, breaking the rules, it could have  
21 short circuit out in the kitchen. It could have started a  
22 fire, it could have set everybody in there on fire. It  
23 could have blew up, blew up. Like so many things that  
24 could have been, that was dangerous about that, that could  
25 have happened. So, I realize that now. Safety and

1 security—

2 **PRESIDING COMMISSIONER BARTON:** Do you think  
3 you're still-- go ahead.

4 **CALVIN WALKER:** Safety and security institution by  
5 just bringing something like that inside of there in the  
6 first place.

7 **PRESIDING COMMISSIONER BARTON:** Have you done the,  
8 the step work? Have you gone through the 12 steps?

9 **CALVIN WALKER:** Well, I haven't, uh, I've, I don't  
10 remember the, all the 12 steps, but it is a couple that  
11 stick out to me.

12 **PRESIDING COMMISSIONER BARTON:** Which one?

13 **CALVIN WALKER:** As far as, as making a self-  
14 evaluation, making a self-evaluation, like evaluating  
15 myself, being self-aware of my responses, of my action, my  
16 behavior and my thoughts. And other one it was, you know,  
17 making amends back to those who I hurt.

18 **PRESIDING COMMISSIONER BARTON:** Well, you  
19 mentioned that earlier. You said you used to take care of  
20 yourself by selling contraband in prison. When's the last  
21 time you did something like that?

22 **CALVIN WALKER:** The last time I did something like  
23 that, I was, I haven't done that since 2016, like 2016  
24 when I got—

25 **PRESIDING COMMISSIONER BARTON:** So, you were



1 ordered to pay for funeral costs, right?

2 **CALVIN WALKER:** Yes.

3 **PRESIDING COMMISSIONER BARTON:** So, you, how big  
4 is your restitution order now?

5 **CALVIN WALKER:** Restitution is, um, 13, I believe, 13  
6 or 12,000.

7 **PRESIDING COMMISSIONER BARTON:** So, when's the  
8 last time you had money put on someone else's books?

9 **CALVIN WALKER:** Maybe-- I don't you remember. It  
10 hasn't been on any time recent. Maybe about 2018 or '19.

11 **PRESIDING COMMISSIONER BARTON:** All right. Okay.  
12 Are you sure about that? Because all we do is run the  
13 people that we know are associated with you. Is there any  
14 reason why they would be putting money on other people's  
15 books in prison where you're at? This is the part where  
16 you don't want to lie.

17 **CALVIN WALKER:** Yeah. Um, I honestly--

18 **PRESIDING COMMISSIONER BARTON:** Has Ms. Atkins put  
19 money on anybody else's books?

20 **CALVIN WALKER:** Ms. Atkins? I believe, I don't believe  
21 she put anything on anybody else's books.

22 **PRESIDING COMMISSIONER BARTON:** Has she put money  
23 on your books?

24 **CALVIN WALKER:** Yes, she's put money on my books.

25 **PRESIDING COMMISSIONER BARTON:** What about your

1 brother?

2 **CALVIN WALKER:** My brother, yeah. Yes, he put money on  
3 my books.

4 **PRESIDING COMMISSIONER BARTON:** Who was putting  
5 money on other people's books in 2019?

6 **CALVIN WALKER:** 2019, it was a friend, um, Jennifer  
7 Greer.

8 **PRESIDING COMMISSIONER BARTON:** And as you sit  
9 here today, you don't believe it happened after 2019?

10 **CALVIN WALKER:** I'm, I'm trying to, I'm trying to  
11 think and see if I remember.

12 **PRESIDING COMMISSIONER BARTON:** Well, what would  
13 you, what would've made you quit doing it then?

14 **CALVIN WALKER:** Well, just realizing that, you know,  
15 this is, this ain't right and that I can possibly get in  
16 trouble for it and that I'm not, you know, the fact that  
17 it's time for me to take some type of responsibility for  
18 my actions and my situation and my circumstances.

19 **PRESIDING COMMISSIONER BARTON:** Well, but you were  
20 still doing other stuff like stealing the syrup and, um,  
21 you know, having other things that you weren't supposed to  
22 have, the thing with the battery. Um, what was the deal  
23 in, um, let me pull it up so I give you some context here.  
24 It looks like 2020, you got written up for, um, you had a  
25 single cell and they had, uh, they found a, a cellphone

1 battery in May 2020. What was, did you have a phone?

2 **CALVIN WALKER:** No, that was left over from the phone  
3 that they had found in 2019.

4 **PRESIDING COMMISSIONER BARTON:** And that why did  
5 you keep the battery?

6 **CALVIN WALKER:** I just, I, I kept it just in case-- I  
7 actually, actually, uh, forgot about it where they found  
8 it at in deep inside my legal work. And so, my cell got  
9 searched multiple times and it was never found. And then  
10 they end up finding it. So, I--

11 **PRESIDING COMMISSIONER BARTON:** Well, it was in  
12 the glass case. I'm assuming the glass case is where you  
13 put your glasses?

14 **CALVIN WALKER:** Well, it was an extra, extra glass  
15 case. Like I had like three or four different glass cases  
16 stuffed inside the, a bin.

17 **PRESIDING COMMISSIONER BARTON:** So, you never  
18 loaned it out or rented it out for other guys or used it  
19 to when you were borrowing cellphones?

20 **CALVIN WALKER:** No. Well, excuse me, were you asking--  
21 I don't understand what you're asking. Excuse me.

22 **PRESIDING COMMISSIONER BARTON:** Well, when I asked  
23 you why you kept the battery, you said, oh, I forgot it  
24 was there. Which doesn't sound, um, credible to me. I  
25 would think if you got your phone taken, you know, hey, I

1 got a battery. One of three things can happen. One is give  
2 it up to the cops when they get the phone 'cause you're  
3 not going to use phones anymore. The other is you keep it  
4 so maybe you can sell it to somebody else and make a  
5 little money. The third is you keep it so that if you are  
6 borrowing cellphones in the future, you could use it to  
7 charge it.

8 **CALVIN WALKER:** Yes. Well, that would've been my,  
9 like, intentions to sell it eventually, but I had, I had  
10 completely forgot about it or I would've already gotten  
11 rid of it.

12 **PRESIDING COMMISSIONER BARTON:** Okay. And what was  
13 the deal in 2021 with the, um, contraband, the sharpened  
14 whatever it was in June 2021? What was going on there?

15 **CALVIN WALKER:** What, I mean, I take full  
16 responsibility for it because I had something that put  
17 the, you know, the, the, the safety and security of the  
18 institution. But it was, as the Officers knew I, I had a  
19 broken TV and I was fixing things so they knew it was like  
20 a screwdriver. I was using it as a tool. But in no way or  
21 form or fashion am I excusing or justifying me possessing  
22 something that, you know, that I had that could have been,  
23 that could use as a, anything as a weapon or as dangerous  
24 to the facility because I shouldn't have possessed it in  
25 the first place.

1           **PRESIDING COMMISSIONER BARTON:**       You realize I'm  
2 looking at a picture of it?

3           **CALVIN WALKER:** Yes.

4           **PRESIDING COMMISSIONER BARTON:**       It does not look  
5 like a screwdriver. It looks like an ice pick.

6           **CALVIN WALKER:** Yes.

7           **PRESIDING COMMISSIONER BARTON:**       Okay. And you're  
8 saying that it was not noted in any way to be a weapon?

9           **CALVIN WALKER:** No, it could have been-- No, no, I,  
10 no, I, I agree. It could have been used, it could have  
11 been used as a weapon. Yes, it was, it's like a  
12 screwdriver. So, it could have been used as a weapon, yes.  
13 That's, there's no mistaking about that. But for me,  
14 possessing it at that time, the reason, that wasn't the  
15 reason because the Officers knew I fixed, I fixed things.  
16 That's why he wrote it as not weapon stock and just as  
17 dangerous contraband because they also got a broken TV out  
18 of it.

19          **PRESIDING COMMISSIONER BARTON:**       Well, but why, why  
20 does it have the grip like this? Couldn't you just use the  
21 metal as a screwdriver without putting all this tape  
22 around the handle?

23          **CALVIN WALKER:** Well, that's so I could hold it.  
24 That's to grip it, in my understanding because it was  
25 inside of, it was inside of something. It was inside the—

1           **PRESIDING COMMISSIONER BARTON:**       All right, let's,  
2 let's cut through all this. When you first came to prison,  
3 somebody showed you how to make weapons, didn't they?

4           **CALVIN WALKER:** Yes, yes.

5           **PRESIDING COMMISSIONER BARTON:**       And why do you put  
6 tape around the bottom of a weapon?

7           **CALVIN WALKER:** As for a handle.

8           **PRESIDING COMMISSIONER BARTON:**       Yeah, so it  
9 doesn't slip out of your hand if you're using it so you  
10 have a better grip on it. So, I understand, you're telling  
11 me your only plan was to use it for a broken TV and there  
12 was a broken tv. It's still very difficult, again, it's  
13 kind of like the gun that you had when you shot Mr. Chang,  
14 right? You said I used it to threaten people before I'd  
15 never shot anybody before I shot him. Well, here you've  
16 got this, uh, item that looks to me like a, like a pick  
17 and if circumstances arose, someone got in your face, it  
18 certainly could have been used to harm somebody.

19          **CALVIN WALKER:** True, yes.

20          **PRESIDING COMMISSIONER BARTON:**       The fact that it  
21 has a dual purpose doesn't make it any less, in my mind—

22          **CALVIN WALKER:** No, no, no, no, no, you're right,  
23 correct. You a hundred percent correct. I take full  
24 responsibility for that, yes. It doesn't negate any  
25 responsibility of what I was using it for and what it

1 could have been used for because clear as day as we sit  
2 there, that can be used as a deadly weapon.

3 **PRESIDING COMMISSIONER BARTON:** Okay. So, what do  
4 you think criminal thinking is?

5 **CALVIN WALKER:** Criminal thinking is not living by the  
6 rules, still partaking in criminal type actions and  
7 behaviors.

8 **PRESIDING COMMISSIONER BARTON:** So, why, you said  
9 you sat in the hole and you decided to stop using drugs.  
10 Um, why did you decide to start, uh, doing programming?  
11 When did you learn about the youth defender law?

12 **CALVIN WALKER:** When, um, I had a consultation I  
13 believe in 2017. And so, then that kind of gave me  
14 insight, but I didn't understand it. Uh, uh, I had a  
15 consultation with a, uh, I believe a Counselor or  
16 something. And then, you know, still at that time, I was  
17 still, you know, living in my life. And so, I didn't  
18 really get the true understanding of it until I started  
19 seeing people go home.

20 **PRESIDING COMMISSIONER BARTON:** When, was my  
21 question.

22 **CALVIN WALKER:** Oh, when, like in, around 20-

23 **PRESIDING COMMISSIONER BARTON:** What year?

24 **CALVIN WALKER:** 2020, 2020, 2021. Somebody I had, I  
25 had known for a while in 2021, he had, he had went home

1 when I was at New Folsom. And—

2 **PRESIDING COMMISSIONER BARTON:** Because one of the  
3 things we're trying to gauge is offender change and change  
4 has five stages. There's pre-contemplation. That's you in  
5 the hole saying, I don't like who I am.

6 **CALVIN WALKER:** Yeah.

7 **PRESIDING COMMISSIONER BARTON:** There's  
8 contemplation, okay, I need to change some things. There's  
9 preparation, all right, I'm going to stop using drugs, and  
10 then by 2020, 2021, I'll start, start programming. And  
11 there's behavior, again, 2022 until now, um, no new  
12 behavior if we believe you on the restitution avoidance.  
13 And then the thing that we're really looking for with  
14 someone like you is whether or not you've really left that  
15 criminal lifestyle. Because even though we might see  
16 change in those first four stages, the fifth change is  
17 what we call maintenance.

18 **CALVIN WALKER:** Yes.

19 **PRESIDING COMMISSIONER BARTON:** So, the good news  
20 is you had a criminal lifestyle from, well, age 11 all the  
21 way up until a few years ago. And you're now, what, 46?

22 **CALVIN WALKER:** Yes.

23 **PRESIDING COMMISSIONER BARTON:** So, roughly 30, 35  
24 years of criminality and—

25 **CALVIN WALKER:** Yes.



1           **PRESIDING COMMISSIONER BARTON:**       You've got pro-  
2   social behavior, arguably for the last two to three years.

3           **CALVIN WALKER:** Yes. And also like, uh, jobs, I've  
4   been trained in a lot of skills that I've been taking as  
5   far as the jobs that I'd in here. And that allowed me to,  
6   you know, gain job skills along with my prosocial skills.  
7   And now I'm an ADA worker. So, I pushed together, uh, you  
8   know, I pushed disabled gentlemen to work-

9           **PRESIDING COMMISSIONER BARTON:**       Yep.

10          **CALVIN WALKER:** To school, to the appointments. I  
11   cleaned their cells. And I'm also in the dog program as  
12   well. I, I kind of felt a little, I'm going to, I was  
13   going to Board today and also the dog that I've been  
14   training for the last couple weeks has found a home. So, I  
15   kind of felt proud of that because when he came, he was  
16   very afraid, have behavior problems and now he's going to  
17   a new home, you know, something that I took part in and I  
18   helped him to achieve, to have a nice loving home, you  
19   know. I helped him change his behavior in a way. So, those  
20   are the daily amends, the things that I do and live to  
21   giving service to my change, to show that I changed, is,  
22   is, is showing and giving myself to others instead of  
23   those selfish ways and behaviors that I used to in the  
24   past.

25          **DEPUTY COMMISSIONER WEILBACHER:**       Commissioner? I'm

1 super sorry, Mr. Walker

2 **PRESIDING COMMISSIONER BARTON:** You want to take a  
3 break?

4 **DEPUTY COMMISSIONER WEILBACHER:** Yeah, I'm sorry.  
5 I've got to help someone here real quick.

6 **PRESIDING COMMISSIONER BARTON:** Okay, let's take a  
7 break and, uh, we'll be back around, what, 9:40 a.m.?

8 **DEPUTY COMMISSIONER WEILBACHER:** Uh, well, I just  
9 need five minutes, sir. Just five minutes.

10 **PRESIDING COMMISSIONER BARTON:** Okay. Let's say  
11 9:35 a.m. We'll check back in.

12 **DEPUTY COMMISSIONER WEILBACHER:** Okay. Thank you.  
13 We're off record.

14 **PRESIDING COMMISSIONER BARTON:** We'll take a  
15 break—

16 **[RECESS]**

17  
18  
19 **DEPUTY COMMISSIONER WEILBACHER:** We we're back on  
20 the record, sir.

21 **PRESIDING COMMISSIONER BARTON:** We're back on the  
22 record in the matter of Mr. Walker's initial parole  
23 consideration hearing with all the parties previously  
24 present. And we'll continue at this time, Mr. Walker. Uh,  
25 I got another area I want to talk to you about, but, um,

1 you mentioned that you, um, you don't know all the steps,  
2 you've worked two of them. Do you currently have a Sponsor  
3 for drugs?

4 **CALVIN WALKER:** Yes, I, I've got, uh, a Sponsor and a  
5 mentor.

6 **PRESIDING COMMISSIONER BARTON:** Who?

7 **CALVIN WALKER:** Uh, Mr. Lee, Lee Gibson.

8 **PRESIDING COMMISSIONER BARTON:** Is he another  
9 incarcerated person there?

10 **CALVIN WALKER:** Uh, no, he is not another incarcerated  
11 person. He's on the, he's on the, on the streets. He, he,  
12 he works for, uh, Initiate Justice where I'm also  
13 thankfully employed as a, uh, inside organizer.

14 **PRESIDING COMMISSIONER BARTON:** We have a letter  
15 from him? I don't remember that.

16 **CALVIN WALKER:** Yes, yes. There, there should be a  
17 letter and everything from, uh, letter about my employment  
18 and about him being a, uh, my, my Sponsor and my mentor.

19 **PRESIDING COMMISSIONER BARTON:** All right. I, I  
20 remember seeing some support letters from organizations  
21 about potential jobs if that's the one you're talking  
22 about. I didn't see one where he said he was your, um, NA  
23 Sponsor, but I can look for that. All right.

24 **CALVIN WALKER:** Okay.

25 **PRESIDING COMMISSIONER BARTON:** So, as far as

1 currently, are you going to groups, how often?

2 **CALVIN WALKER:** Guess what? I do have a, a group-- I  
3 haven't been since I came back from court because I, I  
4 just came back from court and I had to, I got resubmitted  
5 on all the, uh, lists. So, it was one group that I was  
6 supposed to be in, in, but they never called me for it.  
7 I've never been called for it. Uh, I believe it was CGA,  
8 but previously, I had just, um, been, um, I had just  
9 received a certificate for CGA, but I was going to go  
10 through it again, but they said they had made a mistake.  
11 So, I know I was on that list, but they told me that I  
12 wasn't on the actual list because I had already been, uh,  
13 um, graduated. And so--

14 **PRESIDING COMMISSIONER BARTON:** Okay.

15 **CALVIN WALKER:** I did college--

16 **PRESIDING COMMISSIONER BARTON:** So, CGA, Criminal  
17 Gangs Anonymous, right?

18 **CALVIN WALKER:** Yes.

19 **PRESIDING COMMISSIONER BARTON:** And you were a  
20 gang member when you committed this crime. And you said in  
21 part you did it for respect, right?

22 **CALVIN WALKER:** Yes.

23 **PRESIDING COMMISSIONER BARTON:** So, when did you  
24 leave the gang?

25 **CALVIN WALKER:** Well, I left, I left the gang when I

1 decided to make my transition. So, I left the gang, that  
2 whole gang style of life alone around 20, basically 2020,  
3 2021, like 2020. And I say that as I stopped looking at  
4 the gang as, uh, to be validated or as to feel that I'm, I  
5 need to gain their approval or acceptance.

6 **PRESIDING COMMISSIONER BARTON:** So, you're, you  
7 gave me three different years. Which one is it?

8 **CALVIN WALKER:** Well, it is, I say 2020.

9 **PRESIDING COMMISSIONER BARTON:** Okay. So, 2020 is  
10 when you felt that you left gang. How'd you do that?

11 **CALVIN WALKER:** Well, I, I, I believe I, I changed my  
12 life and I told anybody that was still part of that life  
13 that I'm no longer active in that lifestyle. I no longer  
14 want to be any part of that lifestyle, and I don't, I'm,  
15 I'm going to live in my change. I'm changing my life  
16 because I'm becoming a different person.

17 **PRESIDING COMMISSIONER BARTON:** Well, what kind of  
18 things did you do for the gang before then?

19 **CALVIN WALKER:** Well, before then, you know, I, I, I,  
20 I basically sold drugs and, and you know, I sold drugs  
21 and, uh, you know, intimidated people.

22 **PRESIDING COMMISSIONER BARTON:** Intimidated people  
23 for what?

24 **CALVIN WALKER:** Where if they didn't pay or where if,  
25 you know, it was time to pay and they didn't pay, I would

1 be the one to go talk to them.

2 **PRESIDING COMMISSIONER BARTON:** What about  
3 gambling debts?

4 **CALVIN WALKER:** Gambling debts? I didn't really, I  
5 never really gambled too much.

6 **PRESIDING COMMISSIONER BARTON:** No, you didn't  
7 gamble, but you were part of at least a couple other guys  
8 that told people they had to pay their debts to other gang  
9 members, right?

10 **CALVIN WALKER:** Yes, yes.

11 **PRESIDING COMMISSIONER BARTON:** Okay. And the  
12 reason I'm asking this is you got the notice of  
13 confidential information, right?

14 **CALVIN WALKER:** Yes.

15 **PRESIDING COMMISSIONER BARTON:** And in that  
16 confidential, we've got information as recent as, let's  
17 see, this one is February 2019, says that you, along with  
18 uh, some other inmates, uh, threatened an inmate because  
19 he owed some debts. And you said that's consistent with  
20 what you were doing at the time, right?

21 **CALVIN WALKER:** Yes.

22 **PRESIDING COMMISSIONER BARTON:** I can't really  
23 give you more specifics, but, um, then in 2018, uh, we,  
24 you, you told me that your, uh, the phones, remember, you  
25 admitted that you used them for narcotics. And I, I

1 appreciate that honesty 'cause if you were going to stick  
2 with your story that you didn't, that you set in the Risk  
3 Assessment, we actually have two confidentials that  
4 indicate, um, you were using the phone for narcotics  
5 transactions as late as December 2018, and you've admitted  
6 that today. So, I appreciated that. So, both of those  
7 you've admitted. And then in 2017, in the March 31 memo,  
8 we had information, and this actually was from a kite  
9 being passed from, uh, one influential black gang member  
10 shot caller to another. And it listed you, uh, let's see,  
11 uh, let's see. Blah, blah, blah. Listed you as one of the  
12 people that they had on their roster that they could count  
13 on for the BGF. Were you ever involved in the BGF or these  
14 just guys that you knew?

15 **CALVIN WALKER:** These just guys that I knew.

16 **PRESIDING COMMISSIONER BARTON:** Okay. Well, you  
17 must have been doing something that made him think—

18 **CALVIN WALKER:** Yes, the lifestyle that I lived at  
19 that point in time, I, I, yes, I, I was, they felt that I  
20 can be counted on, on certain things even though I wasn't  
21 a part of them. It was people that I knew that I, that I,  
22 that I knew that I felt that had my confidence and that I  
23 had theirs at that moment in time, yes. So, I admit to  
24 that and take full responsibility for that.

25 **PRESIDING COMMISSIONER BARTON:** What were your

1 nicknames?

2 **CALVIN WALKER:** Well, my nickname has only always been  
3 CJ.

4 **PRESIDING COMMISSIONER BARTON:** Never been called  
5 Fat Rat?

6 **CALVIN WALKER:** No.

7 **PRESIDING COMMISSIONER BARTON:** You know who that  
8 is?

9 **CALVIN WALKER:** I knew a person that was Fat Rat, that  
10 his name was Fat Rat, but not me.

11 **PRESIDING COMMISSIONER BARTON:** Okay. Was he part  
12 of the same group?

13 **CALVIN WALKER:** Yes.

14 **PRESIDING COMMISSIONER BARTON:** All right. Yeah,  
15 they have you listed as CJ, Inmate Walker, P74172. Um,  
16 let's see here. Yeah. And this kite is talking about, um,  
17 disciplining someone. And it, you know, said, we're going  
18 to deal with this person, lists you as one of the people  
19 that will be solicited to deal with this person. I don't  
20 know if that came about or not. This was in 2017. So, you  
21 must have been getting away with some violence that you  
22 never got caught for in that 2015 to 2019 period, right?

23 **CALVIN WALKER:** Yes, yes, I take full responsibility,  
24 yes. There were some things like I-- what I didn't take an  
25 active part involved, but there were things asking me to



1 do and take, take part in, and I considered it. And I  
2 listened to—

3 **PRESIDING COMMISSIONER BARTON:** Well, in 2019, you  
4 were with two other guys when they pressured a guy. I  
5 mean, that might have only been verbal in your mind, but  
6 it's still potentially violent, right?

7 **CALVIN WALKER:** Yes, yes, yes, yes. No, by all means,  
8 it was, yes, it is.

9 **PRESIDING COMMISSIONER BARTON:** So, when's the  
10 last time anybody from either that group or any of the  
11 guys involved in the politics on the yard, um, asked you  
12 to do anything?

13 **CALVIN WALKER:** Well, after that, after I stayed,  
14 after that 2019, 2020, after I told them I'm no longer  
15 living for this, I'm no longer in the gang, I'm no longer  
16 part of the gang, I'm no longer doing anything to promote  
17 this gang lifestyle, I want to change my life, that was  
18 in, in 2020. Like 20—

19 **PRESIDING COMMISSIONER BARTON:** Okay. So, are you  
20 still on a GP yard?

21 **CALVIN WALKER:** Yes.

22 **PRESIDING COMMISSIONER BARTON:** Why?

23 **CALVIN WALKER:** Well, I, because I'm now, I'm on a GP  
24 yard in a dog program.

25 **PRESIDING COMMISSIONER BARTON:** Okay.

1       **CALVIN WALKER:** And, and so I figured I could do,  
2 still do positive program no matter what yard that I was  
3 on, and that I can stand in my confidence in my, with,  
4 with distancing myself from the gang without having to  
5 feel that I have to play part or <inaudible> because I  
6 chose to change my life for the better for me and to make  
7 different choices and to live a different, better life  
8 without the consist of hurting people or continuing what  
9 I've been doing for—

10       **PRESIDING COMMISSIONER BARTON:**       So, you're telling  
11 me that for the last four years, nobody from your past,  
12 nobody that did time with you elsewhere, knew you on the  
13 streets, has ever come up to you and said, hey, you know,  
14 what's happening? What are you doing? Are you still down  
15 for, you know, whatever?

16       **CALVIN WALKER:** Yes. Yep. Yes. Some people have, yes,  
17 yes, some people have. I admit to that. But that's when I  
18 need to let them know I'm not part of that life no more  
19 and I don't answer to nobody in that life anymore.

20       **PRESIDING COMMISSIONER BARTON:**       So, why? What's  
21 motivating your change?

22       **CALVIN WALKER:** Because I, I, because, I've changed,  
23 I, I've changed, I've become a different person—

24       **PRESIDING COMMISSIONER BARTON:**       Why?

25       **CALVIN WALKER:** I don't want live in that-- Why?

1 Because I longer think, I no longer think into that gang  
2 lifestyle. I don't ever have the desire to think and live  
3 like that anymore. I, I, I've grown, I'm mature and I,  
4 I've, I don't want to hurt people anymore. And I don't  
5 want to see people hurt. I'd rather help people if I can  
6 versus hurting them and having this-

7 **PRESIDING COMMISSIONER BARTON:** So, you wrote  
8 remorse letters to Mr. Chang and to, you know, the, the,  
9 um, his family, right?

10 **CALVIN WALKER:** Yes.

11 **PRESIDING COMMISSIONER BARTON:** What about your  
12 drug dealing in prison and before prison? How many people  
13 do you think ended up dead as a result of that?

14 **CALVIN WALKER:** I, I, I, I can only imagine. I  
15 couldn't say how many exactly, but I can imagine I did  
16 hurt a lot of people and I do, I'm remorseful and take  
17 full responsibility for my actions at that time, but I  
18 did-

19 **PRESIDING COMMISSIONER BARTON:** Well, what do  
20 people do when they're high on drugs?

21 **CALVIN WALKER:** They can overdose and they can act  
22 out. They can-

23 **PRESIDING COMMISSIONER BARTON:** What do they do to  
24 get money for their drugs?

25 **CALVIN WALKER:** They commit crime. They commit crime.

1           **PRESIDING COMMISSIONER BARTON:**       Violence.

2           **CALVIN WALKER:** Yeah, crime, violence, yes.

3           **PRESIDING COMMISSIONER BARTON:**       Some of them kill  
4 people. Were you under the influence when you committed  
5 this crime?

6           **CALVIN WALKER:** Yes.

7           **PRESIDING COMMISSIONER BARTON:**       See. So, you're  
8 perpetuating that. In prison when guys have drugs, is  
9 there violence?

10          **CALVIN WALKER:** Yes, yes, yes, yes, there is, yes.

11          **PRESIDING COMMISSIONER BARTON:**       Between different  
12 people, sometimes staff.

13          **CALVIN WALKER:** Yes, I do recognize, you know, the  
14 impact that I had of continuing at that moment in time,  
15 being in my addictive past personality of me still selling  
16 drugs, which caused me—

17          **PRESIDING COMMISSIONER BARTON:**       So, where's your  
18 remorse letter for that? Where's your apology letter that  
19 says you recognize the harm that you caused doing all  
20 that?

21          **CALVIN WALKER:** Um, well, I did, uh, uh, uh, I have a  
22 substance abuse treatment plan, which is a relapse  
23 prevention to where I didn't, it is not necessarily a  
24 remorse letter, but it was addressing substance abuse and  
25 criminal addictive behavior while incarcerated, as well as

1 the accountability for my RVRs. It wasn't necessarily a  
2 remorse letter for that, but a remorse letter for, uh, uh,  
3 it was just me writing an essay on my past patterns of  
4 thinking and behavior and my process of changing.

5 **PRESIDING COMMISSIONER BARTON:** Okay.

6 **CALVIN WALKER:** Where I had written, uh, a remorse  
7 letter to Daniel Chang and his family, Katie Chang, Eddie  
8 Chang—

9 **PRESIDING COMMISSIONER BARTON:** No, I, I saw  
10 those, I saw those. That's not what I was talking about.

11 **CALVIN WALKER:** The community—

12 **PRESIDING COMMISSIONER BARTON:** Those are  
13 obviously your primary victims that you should write a  
14 remorse letter to. I just see a lot of other damage from  
15 your criminal history and your wake both before and during  
16 prison that you're sitting here today saying, I take  
17 responsibility for, but I don't see any acknowledgement of  
18 that in the over 80 pages that you submitted to us. And I  
19 couldn't find anything from Mr. Lee. Did you find that,  
20 Counsel, Ms. Benyarku? Did you find that in the 10-day or  
21 in the new submissions? I didn't find a letter from a Mr.  
22 Lee.

23 **ATTORNEY BENYARKU:** No, I'm still looking for it  
24 actually, but I did not find it.

25 **PRESIDING COMMISSIONER BARTON:** Okay. And I take

1 pretty good notes when I go through and review everything  
2 and I, I couldn't find that, so. All right. At this time,  
3 I'm going to turn it over to Commissioner Weilbacher. Mr.  
4 Walker, if you would give him your attention, he's going  
5 to, uh, ask you some questions.

6 **DEPUTY COMMISSIONER WEILBACHER:** Uh, thank you—

7 **CALVIN WALKER:** Yes.

8 **DEPUTY COMMISSIONER WEILBACHER:** Thank you,  
9 Commissioner. Yeah, Mr. Walker, I don't have a lot of  
10 questions, but I do want to ask you some questions that  
11 are regarding post-conviction because I, as the  
12 Commissioner has looked at your file and see all the  
13 documents he mentioned, and I also looked for Mr. Lee's  
14 document as well. I couldn't find it as well, uh, which is  
15 not a, a big problem or anything of that nature, just so  
16 you know. Sometimes that happens and we'll keep looking.  
17 But the good news is, is I did see that you've programmed  
18 and you've done some programming here and there, but I did  
19 have some questions for you regarding your programming. Do  
20 you think you've fully engaged in your programming? Do you  
21 think you've really dived into it?

22 **CALVIN WALKER:** Yes, I, I believe I did because I was,  
23 I began to, as I changed, I began to like the, the results  
24 I was getting. It began to make me feel like a better  
25 person. It made me feel different and it distanced me from

1 the other things that were going on. So, I would engage in  
2 this or would engage in the self-help programs or in the  
3 education with this college, yes, I would—

4 **DEPUTY COMMISSIONER WEILBACHER:** Now—

5 **CALVIN WALKER:** It just at times—

6 **DEPUTY COMMISSIONER WEILBACHER:** Yeah, recently—

7 **CALVIN WALKER:** I was getting—

8 **DEPUTY COMMISSIONER WEILBACHER:** Yeah—

9 **CALVIN WALKER:** It was, it was at times that I was,  
10 um, where I was getting transferred and it was a lot of  
11 things going on where I missed a few assignments and  
12 stuff. And so that kind of had me thrown in limbo because  
13 I was transferred and I, and a lot of my college stuff was  
14 getting sent here. And when I first got here, there was  
15 no, the, the instructor wasn't here. So, I had a lot of  
16 work that got turned in late. And so that was, that I feel  
17 would my, that kind of set me back a little bit.

18 **DEPUTY COMMISSIONER WEILBACHER:** Okay. Uh, do you  
19 think it was you fully engaging or do you think it was  
20 just the circumstances of you not being there present  
21 because you were moving around?

22 **CALVIN WALKER:** Well, I believe that it was, it was  
23 that because anything, everything and every part that I  
24 participated in, I fully engaged in it.

25 **DEPUTY COMMISSIONER WEILBACHER:** Okay, 'cause, I

1 mean, it sounds like you know where I'm about to ask  
2 because I don't understand the June Compassion Prison  
3 project. Did you like that program?

4 **CALVIN WALKER:** Yes, I, I received a certificate,  
5 certificate for it.

6 **DEPUTY COMMISSIONER WEILBACHER:** Well—

7 **CALVIN WALKER:** Received a certificate, yes.

8 **DEPUTY COMMISSIONER WEILBACHER:** Yeah. Well, I, I,  
9 I'm just confused at why you would not attend 25 hours  
10 that they offered. You went to 12 hours, but then you  
11 didn't go to 25 hours and that's, and they were all  
12 unexcused absences. They put in the hours that you were  
13 unable to attend. And I'm not even counting those, I'm  
14 just saying of the hours you were present, it's less than  
15 half of what it, it was. So, I was kind of confused at why  
16 that was, it looked like that. Do you think that's a  
17 pattern with you?

18 **CALVIN WALKER:** Well, at, at time, no. I, I don't  
19 remember, but if it's there, then I, if it, it, it is  
20 there, I can't, excuse me, but I know I moved to a  
21 different building and then they had, they had stopped it  
22 off for a minute, so I don't know if they were calling me.  
23 I didn't know if I was still part in it because they  
24 wouldn't let me go, they wouldn't call me and I moved from  
25 a different building and so it was, it was, they weren't



1 calling me.

2 **DEPUTY COMMISSIONER WEILBACHER:** Okay. Well, just  
3 so you know, I just want you to know that I, I, I'm not  
4 only bringing it up because if that was the one time I saw  
5 it, I would just let that go and say, hey, it was  
6 something like that. But the 2022 programs you did with AA  
7 and NA, you went five hours, they offered you, you, there  
8 were 10 hours that you were unexcused on, and that's not  
9 counting the unable to attend where they backed you up and  
10 said, well, he couldn't make it for those reasons of  
11 whatever. The next one I look at, the best one you've,  
12 you've done, at least in these records and the SOMS  
13 records is the AA group, and that was, uh, in, from  
14 December 2022 to June 2026, and you attended 8.25 hours,  
15 but you missed 6.5 hours. And once again, not, not  
16 including the unable to attend, there's quite a few hours  
17 there. But they, if they say, hey, you, you weren't able  
18 to attend, we don't, we don't look at that. So-

19 **CALVIN WALKER:** Yes.

20 **DEPUTY COMMISSIONER WEILBACHER:** When you think  
21 about you being out in the community and, and you think  
22 about doing, just being out there and being safe for you,  
23 what do you find or what have you found when you think  
24 about what would be your biggest risk? What could bring  
25 you back to prison, if anything? What's the number one

1     thing you're going to watch out for?

2           **CALVIN WALKER:** Um, number one thing I believe would  
3     be, um, negative peers—

4           **DEPUTY COMMISSIONER WEILBACHER:**     Okay.

5           **CALVIN WALKER:** From my past and my environment.

6           **DEPUTY COMMISSIONER WEILBACHER:**     Okay. And so  
7     negative peers, um, what do you mean by negative peers?  
8     What kind of people would you not want to hang out with?

9           **CALVIN WALKER:** Those, those, those who are still in  
10    that criminal thinking mentality. The gang, that, those  
11    that are still in that lifestyle and in that frame of  
12    mind.

13          **DEPUTY COMMISSIONER WEILBACHER:**     Okay. And when you  
14    think about, uh, that, what is your number one coping  
15    skill for negative peers? What are you going to do if you  
16    start to find yourself thinking about hanging out with  
17    negative peers?

18          **CALVIN WALKER:** Well, my first, number one skill is I  
19    don't, I don't want to hang around with them no more than  
20    if it does come to me, I, I got job skills or I have help,  
21    people to call and I have help, I have resources that I  
22    can call to help me in these situations. And if I do feel  
23    any kind of, you know, any kind of triggers or anything, I  
24    have a Sponsor, I have mentors, I have, uh, fiancé, Diana,  
25    I have people I can call and help for. I even have a

1 parole Officer.

2 **DEPUTY COMMISSIONER WEILBACHER:** Okay.

3 **CALVIN WALKER:** I have government assistance, I have  
4 nonprofit organizations. So, it is help that I can ask for  
5 and I can seek. Before that, I never considered that, I  
6 never knew any.

7 **DEPUTY COMMISSIONER WEILBACHER:** Okay. All right.  
8 And let's talk about what's your biggest, your number one-  
9 - Well, I'm going to ask you for all three, but what's  
10 your top, one first, your first one, what's your number  
11 one trigger for negative peers? Your internal trigger?

12 **CALVIN WALKER:** Um, I believe, uh, approval, approval  
13 and acceptance and drug abuse.

14 **DEPUTY COMMISSIONER WEILBACHER:** Okay. And what-

15 **CALVIN WALKER:** Substance abuse.

16 **DEPUTY COMMISSIONER WEILBACHER:** And so, what's the  
17 substance abuse? Where does that fall in? Is that number  
18 two?

19 **CALVIN WALKER:** I believe that falls into number two,  
20 yes.

21 **DEPUTY COMMISSIONER WEILBACHER:** Okay. And how  
22 about-

23 **CALVIN WALKER:** And, uh, uh-

24 **DEPUTY COMMISSIONER WEILBACHER:** How about your  
25 third one?

1           **CALVIN WALKER:** The number one would be like  
2 acceptance, approval-

3           **DEPUTY COMMISSIONER WEILBACHER:**       Okay.

4           **CALVIN WALKER:** You know.

5           **DEPUTY COMMISSIONER WEILBACHER:**       Okay. So,  
6 acceptance is number one. Number two is substance abuse  
7 and your number third, internal trigger?

8           **CALVIN WALKER:** Anger.

9           **DEPUTY COMMISSIONER WEILBACHER:**       Okay. And so, do  
10 you think that, um, when you, uh, at any of the times that  
11 you now look back on it while you've been in custody, when  
12 was the most recent that you felt anger led you to hanging  
13 out with negative peers?

14           **CALVIN WALKER:** Well, it is, I, I can't say for, you  
15 know, since I, since I let go of the gang and I left out,  
16 anger, I don't, I'm not controlled by anger no more. So, I  
17 don't allow that to dictate or control my behavior or what  
18 I do. Now, I, I do realize I am around this environment  
19 where there's some people that's in the change and some  
20 people that's not. But to my understanding, I would like,  
21 I would, I've been making it a point and a pattern to  
22 align myself with people that has changed their life and  
23 that are on a positive track of changing their life and  
24 thinking different and living different.

25           **DEPUTY COMMISSIONER WEILBACHER:**       Okay. All right.

1 And when you've taken your programs, have you taken any  
2 programs that were just solely dedicated to domestic  
3 violence?

4 **CALVIN WALKER:** Yes, I took, I, I got domestic  
5 violence, I took domestic violence and, uh, I have a  
6 certificate for domestic violence as well. So, yes, I, I  
7 took domestic violence to understand that that is another  
8 underlying cause. And I've tied that back to anger and  
9 that's one of my issues, and that, you know, of domestic  
10 violence, watching my mother getting abused by my father  
11 growing up. So—

12 **DEPUTY COMMISSIONER WEILBACHER:** Okay.

13 **CALVIN WALKER:** As when you ask me now to look back on  
14 it, I, I do see that as a number one, also, reason as to  
15 one of my triggers as far as domestic violence.

16 **DEPUTY COMMISSIONER WEILBACHER:** Okay. And when you  
17 were in that—

18 **CALVIN WALKER:** Even though—

19 **DEPUTY COMMISSIONER WEILBACHER:** Okay.

20 **CALVIN WALKER:** Even though that like, because I  
21 watched my mother go through that, I, that, that's, even  
22 though that's a trigger for me, that's something that I  
23 never like, had like I felt real bad about, so I never  
24 really like beating on the women or putting my hands on  
25 women and doing type of stuff or others that matter at

1 that-- I never, I felt bad about that.

2 **DEPUTY COMMISSIONER WEILBACHER:** Okay.

3 **CALVIN WALKER:** And so--

4 **DEPUTY COMMISSIONER WEILBACHER:** So, what kind of,  
5 when you learned about domestic violence, did you learn  
6 about the different types of domestic violence?

7 **CALVIN WALKER:** Yes.

8 **DEPUTY COMMISSIONER WEILBACHER:** And what type,  
9 what types of domestic violence are there? Just give us  
10 the, a couple.

11 **CALVIN WALKER:** It's verbal.

12 **DEPUTY COMMISSIONER WEILBACHER:** Okay.

13 **CALVIN WALKER:** Emotional and physical.

14 **DEPUTY COMMISSIONER WEILBACHER:** Okay. And have you  
15 ever engaged in any type of that? Um, the, the emotional--  
16 you already said you didn't do the physical, the emotional  
17 or, um--

18 **CALVIN WALKER:** Yes, yes.

19 **DEPUTY COMMISSIONER WEILBACHER:** Okay.

20 **CALVIN WALKER:** I, yes, I believe I, I certainly have  
21 as far as emotional and mentally, yes, I, I believe I have  
22 from having dysfunctional relationships and things like  
23 that, yes, yes, I do believe I have.

24 **DEPUTY COMMISSIONER WEILBACHER:** All right. And how  
25 about the cycle of violence? Did you learn about that? And

1 what does that mean when I say that? What does that cycle  
2 look like?

3 **CALVIN WALKER:** Um, the cycle, tension, tension,  
4 explosive and honeymoon period.

5 **DEPUTY COMMISSIONER WEILBACHER:** Okay.

6 **CALVIN WALKER:** So—

7 **PRESIDING COMMISSIONER BARTON:** Let me ask a  
8 question along these lines, Commissioner.

9 **DEPUTY COMMISSIONER WEILBACHER:** Yeah.

10 **PRESIDING COMMISSIONER BARTON:** So, you said that  
11 Jennifer was the last one that put money on your books,  
12 right? Or on someone else's books for you?

13 **CALVIN WALKER:** Yes. Uh, yes.

14 **PRESIDING COMMISSIONER BARTON:** Who's Rachel  
15 Wright? Why would she put money in someone else's book?

16 **CALVIN WALKER:** Uh, she was an old, she was a, uh, old  
17 girlfriend that I still was in contact with.

18 **PRESIDING COMMISSIONER BARTON:** So, did she also  
19 put money on others books for you?

20 **CALVIN WALKER:** Yes, yes, I had, didn't even think  
21 about her. I was, yes, she had.

22 **PRESIDING COMMISSIONER BARTON:** I know she had,  
23 but it was more recent than 2019. You just forgot that?

24 **CALVIN WALKER:** Yes, yes. I, I just, in my mind, I  
25 forgot completely about that, yes.

1           **PRESIDING COMMISSIONER BARTON:**       Well, she was your  
2 girlfriend all the way up through 2022, right?

3           **CALVIN WALKER:** Yes.

4           **PRESIDING COMMISSIONER BARTON:**       Why did you break  
5 up?

6           **CALVIN WALKER:** Uh, well, I, we were going through a  
7 lot of toxic type of situations, arguments and things like  
8 that. And I felt that it, it, for us to be together, it  
9 wouldn't be healthy for us to continue in a, a  
10 relationship. And she agreed to that as well.

11          **PRESIDING COMMISSIONER BARTON:**       Yeah. But at that  
12 time when you talked to the psychologist, you said you  
13 were going to go live with her and start a family  
14 together. That's pretty—

15          **CALVIN WALKER:** Yeah, that was my, that that was my  
16 intentions until later, later, um, you know, we, she, she,  
17 you know, she was part of it too when she no longer wanted  
18 to take up the relationship no longer neither.

19          **PRESIDING COMMISSIONER BARTON:**       So, I'm going to  
20 ask you again 'cause I don't think you were honest with me  
21 before. When was the last time Ms. Wright helped you avoid  
22 restitution? You realize it's all computerized.

23          **CALVIN WALKER:** Yes, yes, yes, I know. I'm just trying  
24 to think of a date to make sure I, uh, get it accurate.  
25 Yes, I believe 2023 maybe.



1           **PRESIDING COMMISSIONER BARTON:**       Okay.

2           **CALVIN WALKER:** Or '22. I believe '23 or '22.

3           **PRESIDING COMMISSIONER BARTON:**       Well, what about  
4       December of 2022?

5           **CALVIN WALKER:** That sounds about right, that sounds  
6       more accurate. I couldn't be sure. Yes, that's December,  
7       2022. That sounds about right.

8           **PRESIDING COMMISSIONER BARTON:**       And what's the  
9       problem with that behavior?

10          **CALVIN WALKER:** Well, that's, that can be, that's  
11       criminal, active criminal thinking, criminal active  
12       behavior about avoiding the restitution or avoiding, and  
13       not following the laws.

14          **PRESIDING COMMISSIONER BARTON:**       Yeah, that's the  
15       obvious one. But you were talking about your plan to, you  
16       know, you said one of your risk is negative peers. How  
17       many people does it take to take part in restitution  
18       avoidance?

19          **CALVIN WALKER:** Um, can I have a minute to think about  
20       the question?

21          **PRESIDING COMMISSIONER BARTON:**       It's pretty easy.  
22       It's at least three.

23          **CALVIN WALKER:** Well, yeah, yeah, yeah.

24          **PRESIDING COMMISSIONER BARTON:**       There's you,  
25       right?

1           **CALVIN WALKER:** Me.

2           **PRESIDING COMMISSIONER BARTON:**       There's else the  
3 person putting the money, which would be her. And then the  
4 third person has to be another inmate.

5           **CALVIN WALKER:** Yes.

6           **PRESIDING COMMISSIONER BARTON:**       Which means you  
7 had to find somebody else that was criminally minded to do  
8 it for you. And then usually what did you have to pay him?  
9 Like a soup or 10% or something?

10          **CALVIN WALKER:** Yes.

11          **PRESIDING COMMISSIONER BARTON:**       Yeah. So, that's  
12 all criminal thinking, criminal peers, criminal behavior.  
13 Okay. All right. Go ahead, Commissioner.

14          **DEPUTY COMMISSIONER WEILBACHER:**    No, Commissioner,  
15 you-- That was actually kind of where I was going to  
16 finish as well on that, uh, in regarding-- So, um, do you,  
17 do you know that there's also, when it comes to domestic  
18 violence, do you know that there's financial as domestic  
19 violence? Do you think you've done that kind of activity  
20 as well?

21          **CALVIN WALKER:** Yes.

22          **PRESIDING COMMISSIONER BARTON:**       And think of the  
23 word abuse. Don't use the word violence when you think of  
24 it 'cause domestic abuse encompasses the verbal, the  
25 emotional, the financial. And if you were using women for

1 money to get what you needed in prison, and I know you  
2 said you were emotionally invested in that relationship,  
3 but that's a form of abuse, right?

4 **CALVIN WALKER:** Yes.

5 **PRESIDING COMMISSIONER BARTON:** And it, it goes  
6 back to that codependency I was talking about before. And  
7 so, it's enabling one another to do things that you know  
8 are wrong 'cause if, if restitution avoidance really was  
9 okay, and I know a lot of guys say, well, everybody does  
10 it, it must be okay, then you do it out in the open, but  
11 you don't. you have to lie about it. That should be your  
12 first clue that it's not right.

13 **CALVIN WALKER:** Yes.

14 **PRESIDING COMMISSIONER BARTON:** All right.

15 **CALVIN WALKER:** Yes.

16 **PRESIDING COMMISSIONER BARTON:** Uh, Mr. Stein, do  
17 you have any questions you'd like us to ask?

18 **DEPUTY DISTRICT ATTORNEY STEIN:** Good morning,  
19 everybody. Uh, just briefly, um, Mr. Barton, if, if, if  
20 you might ask Mr. Walker, if he might, uh, expand a little  
21 bit about, um, the life crime, uh, for the first time  
22 this-

23 **PRESIDING COMMISSIONER BARTON:** Not necessary,  
24 Counsel. We're really clear on what happened in the life  
25 crime. Do you have a specific question?

1           **DEPUTY DISTRICT ATTORNEY STEIN:**       I do.

2           **PRESIDING COMMISSIONER BARTON:**       Okay.

3           **DEPUTY DISTRICT ATTORNEY STEIN:**       And that was what  
4 was yelled out? He said he heard somebody yell something.  
5 So, my question was who yelled what? And did-

6           **PRESIDING COMMISSIONER BARTON:**       Okay.

7           **DEPUTY DISTRICT ATTORNEY STEIN:**       Did the victim do  
8 anything specifically to corroborate what he was hearing?

9           **PRESIDING COMMISSIONER BARTON:**       So, you heard a  
10 slang term being yelled by somebody. Do you know who  
11 yelled it? Or was it-

12           **CALVIN WALKER:** Yes, uh, <inaudible> Strater. She was  
13 the witness. She was the, well, she was in the, she was in  
14 the car with Daniel Chang. She the one that, she was the  
15 one that brought him to the area where I was selling drugs  
16 at, yeah. And she was in the car with-

17           **PRESIDING COMMISSIONER BARTON:**       So, you thought  
18 she was indicating that he was going to cheat?

19           **CALVIN WALKER:** Yes.

20           **PRESIDING COMMISSIONER BARTON:**       All right. What  
21 else, Mr. Stein?

22           **DEPUTY DISTRICT ATTORNEY STEIN:**       That's all I have.  
23 Thank you.

24           **PRESIDING COMMISSIONER BARTON:**       All right. Ms.  
25 Benyarku, any questions you want to ask your client?

1           **ATTORNEY BENYARKU:** Yes. Thank you. Um, you know, Mr.  
2 Walker, there's been a lengthy talk about, you know, your  
3 past and criminal behavior and, you know, taking your time  
4 to get to your point of change. Tell us now, going  
5 forward, who are you and what kind of—

6           **PRESIDING COMMISSIONER BARTON:** No, you can do  
7 that in your closing statement. That's not, not a  
8 question, that's a broad opening for a closing statement.  
9 Ask him something specific that you wanted to clarify.

10          **ATTORNEY BENYARKU:** Okay. I want to clarify in terms  
11 of the programming that you think has changed you and  
12 helped you the most.

13          **PRESIDING COMMISSIONER BARTON:** Again, too broad.  
14 Is there a particular program you want to ask him about?  
15 I'm familiar with virtually all of the programs he's got  
16 listed here. So, is there a particular one you want to ask  
17 him about?

18          **ATTORNEY BENYARKU:** The dog program. The dog program—

19          **PRESIDING COMMISSIONER BARTON:** Okay. So, what has  
20 the dog program helped you with, you think, the most in  
21 your rehabilitation?

22          **CALVIN WALKER:** Well, the dog, the things that the dog  
23 program has helped me is to show compassion and empathy.

24          **PRESIDING COMMISSIONER BARTON:** Okay.

25          **CALVIN WALKER:** Yes. That—

1           **PRESIDING COMMISSIONER BARTON:**       What do you think  
2 empathy is?

3           **CALVIN WALKER:** Empathy is, is putting myself in other  
4 people's shoes and thinking about them before myself.

5           **PRESIDING COMMISSIONER BARTON:**       Okay. When did you  
6 start that program?

7           **CALVIN WALKER:** I started the dog program, maybe the  
8 beginning of this, actually this year. I started it this  
9 year.

10          **PRESIDING COMMISSIONER BARTON:**       Okay. All right.  
11 What else, Ms. Benyarku?

12          **ATTORNEY BENYARKU:** Okay. Can we talk about the job  
13 offers that you have in terms of the skills that you've  
14 been learning in your education and your vocational  
15 training? What, um, transferable skills that you feel that  
16 you have when, if you're released?

17          **CALVIN WALKER:** I have—

18          **PRESIDING COMMISSIONER BARTON:**       First of all, just  
19 tell me what are the job offers that you think you have?

20          **CALVIN WALKER:** Well, the job offers that I have is  
21 through, uh, Initiate Justice. I, I, I don't understand  
22 why that from Lee Gibson, uh, uh, is not in inside the,  
23 um, report, but it—

24          **PRESIDING COMMISSIONER BARTON:**       Okay. But what  
25 does the job entail?

1       **CALVIN WALKER:** It's it for nonprofit organization.  
2       I'm a, uh, I work an employer in nonprofit organization  
3       with civil duty, with helping inmates, as well as inmates.  
4       I'm an inside organizer, inside right now employed as that  
5       and also get out and helping former incarcerated,  
6       incarcerated.

7       **PRESIDING COMMISSIONER BARTON:**       Uh, and what have  
8       they told you? Is that a full-time job on the outside? Do  
9       you know what it pays? What?

10       **CALVIN WALKER:** Well, it, it, it would be a part-time  
11       job, but, um, I'm not sure what it pays. I don't know if  
12       it's voluntarily through—

13       **PRESIDING COMMISSIONER BARTON:**       Okay. So, what  
14       about transitional homes job offer?

15       **CALVIN WALKER:** The transitional homes through a, a  
16       Kavanagh House who has their own facilities and job  
17       offerings, they do have job there lined up for me if I was  
18       to be found suitable to—

19       **PRESIDING COMMISSIONER BARTON:**       Doing what?

20       **CALVIN WALKER:** Get into their transitional-- huh?

21       **PRESIDING COMMISSIONER BARTON:**       Doing what?

22       **CALVIN WALKER:** Um, actually I'm not sure, but I do  
23       want to learn, I do want to help them with, helping in the  
24       community, but—

25       **PRESIDING COMMISSIONER BARTON:**       What other job

1 offers?

2 **CALVIN WALKER:** And I have a job offer with, um, so  
3 solar, solar, solar pounding with the Homeboy Industries.

4 **PRESIDING COMMISSIONER BARTON:** Okay. And that's,  
5 that's a good program to get into it.

6 **CALVIN WALKER:** Yes, but I've already been accepted in  
7 that and in Kavanagh House. Um, they have insured and let  
8 me know exactly, exactly what job positions they have  
9 available for me. So, for me to say—

10 **PRESIDING COMMISSIONER BARTON:** Well, but that's  
11 why, why we're asking these questions. We're trying to  
12 find out specific, you have more specifics than what we  
13 have listed here. So—

14 **CALVIN WALKER:** Yes.

15 **PRESIDING COMMISSIONER BARTON:** You've got  
16 potentially the solar industry with Homeboy, something  
17 with Kavanagh's House transitional work and then part-time  
18 or, or something with Initiate Justice. Anything else?

19 **CALVIN WALKER:** Yes—

20 **PRESIDING COMMISSIONER BARTON:** And then you have  
21 the dog program skills, which—

22 **CALVIN WALKER:** Yes, the dog program—

23 **PRESIDING COMMISSIONER BARTON:** I do know guys who  
24 have used that to get jobs in that industry, you know,  
25 working like Petco or PetSmart being dog trainers.



1           **CALVIN WALKER:** I also founded a non-profit  
2 organization in Oregon named Good Boy, but I haven't been  
3 able to operate it or anything like that. But it  
4 <inaudible>, but I have listed it, it is, it's, it is all  
5 on, it's 511C3 status. We're open and ready to operate and  
6 function. It's just been hard to—

7           **PRESIDING COMMISSIONER BARTON:**       Again, difficult  
8 to estimate what you'd be making or if that would be a  
9 living wage starting out.

10          **CALVIN WALKER:** No, I, okay. No, I understand. I  
11 understand, I understand. I understand that part. Okay.  
12 Excuse me. But yes, as, as far as that, as, as far as, um,  
13 I know with the training in the printing center, they  
14 started at 2150 at Kavanaugh House. They didn't say what  
15 exactly, but—

16          **PRESIDING COMMISSIONER BARTON:**       Okay.

17          **CALVIN WALKER:** Because it's different training. So,  
18 but that, that, that's the extent and I thought I, I, I  
19 thought I sent my, all my Attorney had all the letters and  
20 stuff from Kavanaugh to Amity. So, I—

21          **PRESIDING COMMISSIONER BARTON:**       Well, we're, we're  
22 taking your word for it. That's why we're asking these  
23 questions.

24          **CALVIN WALKER:** Yes.

25          **PRESIDING COMMISSIONER BARTON:**       What else, Ms.

1 Benyarku?

2 **ATTORNEY BENYARKU:** I just want to clarify, can you  
3 explain the relationship that he has with his Sponsor, Mr.  
4 Lee, since we didn't have his letter. Can you explain in  
5 terms of—

6 **PRESIDING COMMISSIONER BARTON:** Okay. What—

7 **ATTORNEY BENYARKU:** That relationship?

8 **CALVIN WALKER:** Mr. Lee was a formerly incarcerated,  
9 uh, uh, person who had gotten, uh, gotten, uh, uh, found  
10 suitable through his process and then went out through  
11 Initiate Justice. And then when he came back inside here  
12 from a, um, an event that they held, he seen me, talked to  
13 me, and he been, ever since then, he's just, hey, I'm  
14 going to Sponsor you. You going to be my, I'm, you know,  
15 I'm going to mentor you, and we're going to get you right  
16 and get me situated. So, I became a, an inside organizer  
17 with Initiate Justice employed through them to help inside  
18 with, you know, initiate, you know, being able to be an  
19 inside organizer. And basically what we do is civic  
20 engagement into certain things inside and correspond with  
21 the, with those outside to make sure that people are  
22 informed about what resources they have, what resources  
23 are available and how to be able to access these  
24 resources.

25 **PRESIDING COMMISSIONER BARTON:** Okay. Anything

1 else?

2 **ATTORNEY BENYARKU:** That's all the, that's all the  
3 questions I have.

4 **PRESIDING COMMISSIONER BARTON:** All right, we'll  
5 go to closing statements. Each Attorney will have up to 10  
6 minutes. We'll start with the DA's office. Uh, we do have  
7 your letter in opposition, Mr. Stein, you don't have to  
8 read that to me. But anything else, um, feel free. It is  
9 your opportunity. Go ahead.

10 **DEPUTY DISTRICT ATTORNEY STEIN:** Thank you. Um, I  
11 would just start with the positive, uh, and that is that  
12 Mr. Walker has made efforts with regard to his education  
13 that I think are impressive. Um, and I think that he is,  
14 uh, making strides at coming to grips with, um, not only  
15 what he has done, uh, that landed him in prison, but also  
16 his behavior and rules violations that have, uh, have  
17 occurred since he's been in prison up to a point. Um, what  
18 is very concerning to me, uh, is that Mr. Walker, uh, he  
19 has admitted that, uh, he has had this criminal mentality  
20 for much of his life, um, possess guns, use guns, use them  
21 to intimidate others, uh, and in fact shot and killed a  
22 person such that, that's what has brought him, um, today's  
23 hearing. Um, but what really, uh, concerns me is that, uh,  
24 he was in possession of, uh, something that resembles an  
25 ice pick while he was in prison. Um, and that was, I

1 believe, 2021. Um, for someone with Mr. Walker's  
2 background, that for me is a red flag. Um, I understand  
3 there was a broken TV and his explanation, but, um, uh,  
4 that, that, uh, that's tough for me to accept. Um, also  
5 with regard to, um, his, I would say, uh, potential for  
6 violence, um, obviously he has a lot to overcome, but I do  
7 think that Mr. Walker has the, the tools to overcome these  
8 things. He's a very articulate, very intelligent  
9 individual. You could just tell by talking to him and he  
10 does have the ability to have insight, but when he, you  
11 have the life that he has and he's had that mentality for,  
12 uh, I think over 30 years, you don't just flip the switch  
13 and it doesn't happen overnight such that, um, one can  
14 change that quickly. It takes time. And I think he's made  
15 steps, but he has a ways to, a ways to go. Um, with regard  
16 to his ability to, to follow rules, up until recently,  
17 he's had some issues with regard to that. It seems like  
18 there was a restitution issue or someone was, um,  
19 violating the rules on his behalf. Um, there has been  
20 reference to him having entitlement, entitlement issues,  
21 uh, maybe issues with authority that, that I think he  
22 needs to work on. And I think he recognizes that. Um, but  
23 for someone with his background and with what he has, um,  
24 lived his life experience, it, um, it makes these types of  
25 violations and inability to follow the rules all the

1 more serious because the potential for violence is that  
2 much higher, in my opinion. Um, so to sum up, I would say  
3 that I think he has the tools, um, and the ability to get  
4 to where he wants to go. Um, and should he continue, uh,  
5 in this path, um, I think he, he has the ability to, to  
6 get to where he wants to go, but I do not think that he is  
7 an appropriate, uh, that this is an appropriate time to  
8 release him and that he still poses a threat to public  
9 safety.

10 **PRESIDING COMMISSIONER BARTON:** All right. It is  
11 10:16 a.m. Ms. Benyarku, your opportunity to give a  
12 statement.

13 **ATTORNEY BENYARKU:** All right. Thank you. So, you  
14 know, Mr. Walker has a, a, a history that it's all too-

15 **CALVIN WALKER:** I can't hear her.

16 **DEPUTY COMMISSIONER WEILBACHER:** Yeah, we lost you,  
17 Counsel.

18 **ATTORNEY BENYARKU:** Sorry, can you hear me?

19 **DEPUTY COMMISSIONER WEILBACHER:** Yeah, now you, now  
20 we can.

21 **CALVIN WALKER:** Yes.

22 **ATTORNEY BENYARKU:** Okay.

23 **DEPUTY COMMISSIONER WEILBACHER:** You have to start,  
24 you'll have to start back over.

25 **ATTORNEY BENYARKU:** Okay. So, I'm saying, um, Mr.

1 Walker has a history that's all too familiar. You know,  
2 being exposed to violence at an early age, his mom being  
3 addicted to substance abuse, witnessing domestic violence  
4 at the home, um, he was placed in a situation where it was  
5 dysfunctional, violent, and where he could not, you know,  
6 extract himself from. And this mentality has shaped his  
7 mindset and it has unfortunately carried with him through  
8 all these years. Um, when you do better, it's, it is only  
9 because you've been exposed to different things, different  
10 lifestyle and different things. And so, you know,  
11 throughout his 35 years prior, Mr. Walker has been exposed  
12 to this criminal lifestyle, criminal thinking. But when  
13 he, you know, decided in his head to be, allow himself to  
14 be educated on, living a different life, he has taken the  
15 reins by the horns, he's allowed himself to be open to new  
16 ideas and new possibilities. And we can see that in his  
17 change behavior since, um, you know, 2021, where he's  
18 saying that that's when he really started his change. He's  
19 now like in the steps, he's taken the process of the  
20 stages of change. And now I feel that he's able to be in  
21 the maintenance stage where now he's, he's willing, he  
22 wants to, he likes the results that he's getting. This is  
23 the new way of thinking. We have to allow Mr. Walker to be  
24 able to be separated from his past criminal thinking  
25 regardless of how long he's been thinking that way, when

1 he has now decided that he wants to make the change. And  
2 we have to allow him to show them that, yeah, he's been  
3 able to rehabilitate. He's doing things that are pro-  
4 social now, he's in the dog program. He's allowed himself  
5 to put himself and have empathy for an animal, have  
6 empathy for other people. He's, um, an ADA worker, which  
7 has allowed him to have also empathy for people who may  
8 not be in the position where he is in where he can have  
9 assistance. He's putting himself, surrounding himself with  
10 pro-social people, having good parole and release plans,  
11 which were mitigating, you know. The job offers, the  
12 multiple job offers he's obtained. The Homeboy Industries,  
13 all these are tools that can help him. He's gotten a  
14 Sponsor that can help him on the outside to stay insulated  
15 with pro-social environment, pro-social people. Um, if we  
16 look at, you know, um, all the positive things-- he has  
17 admitted it, he came here, he's been honest with us in the  
18 sense that he's taken accountability and correcting some  
19 of the past errors in the CRA and has now accepted  
20 responsibility and is being open and honest with the  
21 Board. I'd just like the Board just to recognize that Mr.  
22 Walker is not that same person that he was when he was  
23 incarcerated, and, and even throughout his incarceration.  
24 He's now taking on his change. He's allowing himself to  
25 understand. He knows his stressors, he knows his triggers,

1 he, he's aware and self-aware of, you know, the  
2 environments that he, that he needs not to be in. He's  
3 self-aware in terms of, you know, the cycles of violence  
4 and allowing himself not to be put in that situation and  
5 surrounding himself with pro-social things. Um, I  
6 understand that it's an issue where you guys may not feel  
7 that his change has been sustained long enough. So, I'd  
8 just like the Board just to recognize that he is changed  
9 and that if you find him suitable, that you would find him  
10 suitable. But in the event that you don't, please provide  
11 him with a minimal denial period. Thank you.

12 **PRESIDING COMMISSIONER BARTON:** All right. Now,  
13 Mr. Walker, is your opportunity to expound if you'd like  
14 on your change and give a closing statement. Um, you're  
15 not required to, if you have something you want to read,  
16 you're perfectly welcome to.

17 **CALVIN WALKER:** Yes. Excuse me.

18 **PRESIDING COMMISSIONER BARTON:** That's fine.

19 **CALVIN WALKER:** Okay. This, this is my, my closing  
20 statement that I—

21 **PRESIDING COMMISSIONER BARTON:** Go ahead.

22 **CALVIN WALKER:** That I submitted. My closing  
23 statement: I said, please allow me to begin by expressing  
24 how deeply and sincerely sorry I'm for murdering Daniel  
25 Chang and for the immense suffering and pain that I caused



1 his mother, Katie Chang, father, Eddie Chang, brothers,  
2 Roger, Roger and Steven Chang, and aunt as well, everyone  
3 else who loved and cared about Daniel as well. Daniel  
4 Chang was a good person who in no manner deserved what I  
5 did to Daniel. I feel so guilty and deeply ashamed for the  
6 suffering, hurt, and pain and trauma that I caused the  
7 Chang family. I'm certain if I was, if it wasn't for  
8 Daniel, if it wasn't for Daniel Chang, I would still be  
9 alive-- if it wasn't for me, Daniel Chang would still be  
10 alive today. I'm deeply sorry for all I caused in regards  
11 to all and everything that I've done. If I am or not  
12 suitable for parole, that remains a question for the  
13 Panel. I only know that I respectfully ask, ask this  
14 Panel, could it look at my entire life, taking into  
15 account not only this tragic crime, but the things that I  
16 have been doing since, since my rehabilitation and  
17 rehabilitating myself. I was 20 years old when I committed  
18 this crime, and I'm about to be 47 years old now. Since  
19 2016, I have been going through the process of  
20 recognizing, confronting and challenging and resolving all  
21 the issues that I was struggling with when I committed  
22 this horrible act. It has taken me some time, yes, I get  
23 that it's a process of progress. I, in the past, I  
24 harbored dysfunctional unhealthy resentments and grudges.  
25 I was selfish, impulsive, irresponsible, lost,

1 destructive, afraid, immature, ignorant and with no self-  
2 esteem, insecure, and a callous heart, I had no idea who I  
3 was, nor did I understand or know my self-worth or value.  
4 I was very stressed out and depressed. And to make things  
5 worse, I was abusing drugs and alcohol daily. Please allow  
6 me to be crystal clear. None of these things are meant to  
7 absolve me of my responsibility. Under no circumstances  
8 there are no excuses for my actions or behavior. I'm bring  
9 you these issues up to demonstrate my mind state at that  
10 time back then only. I only cared about my pain then,  
11 which was self-centered, self-created, and which all  
12 resulted in my bad decisions that I, my bad decisions, and  
13 my bad decision making. Today, I'm a caring, considerate,  
14 responsible, grown, mature, kind, hearted person that has  
15 empathy for everyone. I no longer resent anyone. I have  
16 gained my self-esteem. My depression has suppressed and  
17 subsided, and I'm willing and have been doing everything  
18 to the best of my ability, whatever it takes to maintain  
19 my sobriety and that is attending AA meetings upon my,  
20 excuse me, upon my suitability and my release. When I was  
21 young in my past addictive personality, I was angry,  
22 confused, lost compulsive, impulsive and careless with a  
23 criminal addictive thought process. I no longer live my  
24 life, nor do I want to, nor do I desire to live within an  
25 unhealthy structures of a criminal gang active lifestyle.

1 Now that I have grown and matured, I have humbled myself.  
2 I think before I act, I think about that thought and  
3 action. I have emotional intelligence, empathy,  
4 responsibility, and I take responsibility for all my  
5 choices and actions. I have self-awareness and remain  
6 conscious of how my actions affect others. Being the boss  
7 of my brain, rejecting peer pressure, staying away, excuse  
8 me. And staying away from people in environments where  
9 there's illegal activities and criminal elements are. AVP,  
10 Compassion Prison Project, Kairos, Red Ladder helped me  
11 with developing pro-social skills, along with other  
12 techniques, having the ability to stop, count to five or  
13 10 seconds to make better, better, positive decisions, use  
14 humor, not to take things personal, and using kindness and  
15 reasoning in a productive way to resolve confrontational,  
16 confrontational situations. I have developed a healthy  
17 attitude about how precious, valuable, and worthy life is.  
18 I have learned to gain many employment skills and  
19 vocational skills, as well as enrolled in college to  
20 getting an AA in sociology. I also have a certificate for  
21 business. I have acquired many skills and certificates in  
22 hospitality, tourism, construction industry, business  
23 management, human resource services, and manufacturing. I  
24 have a business employment, pro-social skills, and a whole  
25 new positive attitude with a whole new group of friends

1 who I've tend to lean on and ask help for if needed. I'm  
2 not afraid to ask for help when I need it. In any given  
3 situation, I know that there's resources out there to help  
4 me. That's, that's, that's, that's it, um, that I have.  
5 But I just wanted to expand on that, that I know that  
6 during my life and during my situations and during my  
7 transition, I deal with struggles. I had struggles. It is,  
8 it is, it is not an overnight thing. But once I got it and  
9 I got the hang of it and I understood it and I came to  
10 terms with it, I got it. And I was tired of the same  
11 results. I was tired of getting the same thing. I was  
12 tired of living my life in this vicious cycle of getting  
13 nowhere, of going nowhere, of not making progress. I'm not  
14 living to the potentials that I know I have in me to be,  
15 that I've discovered and that other people see in me to  
16 be. So, you know, I, I, um, take responsibility for  
17 everything that I've done, everyone I've hurt, everything  
18 that I've impacted, everyone who I've impacted in a  
19 negative manner. And I live for the progress of being of  
20 service to those, to showing my empathy, showing service,  
21 showing my remorse, you know, even to my family for  
22 putting them in this situation and shame and guilt that I  
23 caused on them for the bad decisions that I made.

24 **PRESIDING COMMISSIONER BARTON:** All right, it is  
25 10:27 a.m. We'll take a break, come back with a decision

1 at 10:40 a.m. If we need more time, we'll let you know.  
2 Otherwise, we'll be back at that time. We're in recess.

3 **CALVIN WALKER:** All right.

4 **DEPUTY COMMISSIONER WEILBACHER:** Off record.

5 **[RECESS]**

**CALIFORNIA BOARD OF PAROLE HEARINGS****DECISION**

**DEPUTY COMMISSIONER WEILBACHER:** We're back on, sir.

**PRESIDING COMMISSIONER BARTON:** We're back on the record in the matter of Mr. Walker's initial parole consideration hearing with all the parties previously identified. Today is January 29, 2025. The time now is 10:40 a.m. And we have to make a decision as to whether or not he continues to pose an unreasonable risk to public safety, and a denial must be based on evidence in the record of current dangerousness. The law requires us to give great weight to the mitigating effects of diminished culpability of youth as compared to adults, the hallmark features of youth and any subsequent growth and maturity in reviewing his suitability and we've done so. We've also considered his Central File, the Comprehensive Risk Assessment, the additional documents submitted for the hearing, the testimony from Mr. Walker, the opposition from the DA's office, statements of both Counsel. We did review his confidential file, talked to him about the issues there that concerned us. He admitted his involvement in those things. So, there's no need to, um, make a confidential tape or rely on that information from

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1 the confidential file. Rather, we'll rely on his  
2 testimony. Based on the legal standards and evidence  
3 considered, we find he continues to pose an unreasonable  
4 risk to public safety and is not suitable today. However,  
5 we are imposing the minimum denial length and we'll go  
6 through the reasons for that. But at this time, we feel  
7 the aggravating factors do outweigh the mitigating factors  
8 as follows. In the static factors, his unstable social  
9 history, his voluminous criminal history, his poor  
10 performance on supervised release, and his lack of  
11 offender control are all aggravated factors. However, they  
12 are offset, um, somewhat by the youth offender factors,  
13 which I'll go into when we talk about the denial length.  
14 The life crime itself was aggravated as well in that it  
15 was a, uh, an act that was carried out in a callous, uh,  
16 brutal manner with very little provocation over a \$15 drug  
17 sale. Um, the act also was aggravated because it was done  
18 as part of an ongoing criminal lifestyle that involved  
19 gang members, involved other criminal enterprises, um, and  
20 certainly had the potential to harm more people. So, all  
21 of those things though are static factors, Mr. Walker, and  
22 I, I want to be very clear with you. Um, we did not deny  
23 you today, uh, because of the life crime. We're denying  
24 you more because of your behavior in prison and the fact

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1 that we have to make sure that the change that you're  
2 starting to evidence is sufficient that it will remain  
3 permanent. And I'll go into that. Your institutional  
4 adjustment has been aggravated. You have numerous rule  
5 violations, the last serious one being in, uh, June 2021.  
6 Again, while we recognize your explanation for that, um,  
7 instrument, it's certainly in my opinion, with 30 years or  
8 more of experience with prisons, um, looks like something  
9 that could very well be used as a weapon and could be very  
10 well, uh, harmful to someone if it were to be used as a  
11 weapon. So, that was concerning. Um, but also you have the  
12 ongoing restitution avoidance, which, uh, I believe was  
13 ongoing to at least the end of 2022 if not into early  
14 2023. And that's problematic because as I pointed out to  
15 you, not only is it a new crime under Penal Code section  
16 155.5, it also shows an ongoing callousness towards  
17 victims. Now I'm hoping that your dog program, your ADA  
18 work does develop empathy in you, does develop an ability  
19 to see that others have it difficult or they need someone  
20 to take care of them. Um, and hopefully that will continue  
21 to impress upon you, um, the damage that you've caused  
22 with your callous behavior in the past. Not just in the  
23 murder, but in ongoing drug sales which harms the  
24 community, harms individuals. Like you said, people

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1 overdose, people kill for drugs, people kill for money to  
2 get drugs, people kill while they're impaired on drugs.  
3 All of that is very concerning and that's all a nexus to  
4 the criminal thinking and criminal behavior that you had  
5 at the time of the crime. And it shows ongoing  
6 involvement. As I pointed out to you, it takes at least  
7 three people to do restitution avoidance. And that means  
8 you have to involve someone else in your enterprise who  
9 very well may be a lifer and now have their potential  
10 grants jeopardized because they were doing you a favor to  
11 help you avoid restitution. It also shows character  
12 defects. And this is another area where we think you could  
13 do more work in your programming. You talked about a moral  
14 inventory and making amends, but I think what you should  
15 invest some time in is working through the steps, dealing  
16 with character defects with a Sponsor. Go through and list  
17 all of your character defects and then take the next step  
18 and say, what's the opposite of these things? If I was  
19 callous, selfish, entitled, et cetera, you know, uh,  
20 insecure, list all of those character defects and then  
21 figure out what the opposite is and then do a then and now  
22 essay and tell us here's how I changed. I've gone from  
23 selfish to thinking of others. I've gone from callous to  
24 understanding the harm that I caused with my actions and

25 **CALVIN WALKER    P74172    01/29/2025    DECISION PAGE 4**

1 go through each one because that really shows  
2 internalization of your programming. Um, because you had  
3 programs on those things before 2023 and you still were  
4 involved in behavior that was contrary to that. And so  
5 there is some, um, concern that a lot of guys will do all  
6 this programming checkboxes, but if we see that your  
7 participation is minimal or as was pointed out by the  
8 Deputy Commissioner, at best 50% or so, that doesn't show  
9 us that you are really invested in the programs. It shows  
10 us that you want the certificates. Um, and then being able  
11 to talk about the program, someone that's been in NA for  
12 as long as you have, we never require you to memorize the  
13 steps, but I would've thought you would've talked more  
14 about a few of the other steps. Um, because as you said,  
15 you were under the influence at the time and drugs was a  
16 part of your lifestyle in prison up through 2016. And we  
17 recognize, as did the Risk Assessment, that if you were to  
18 fall back into your maladaptive ways of coping, that's on  
19 page 12 of the Risk Assessment, which includes drug use,  
20 you would be very dangerous. Um, so there's always the  
21 potential for violence in any dispute over money. I've had  
22 restitution avoidance issues where, um, people get an RVR  
23 and then we find out, well, what was the fight about?  
24 Well, he got a hundred bucks on his books and, you know,

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1 he was only supposed to take 10 but he took 20 and we got  
2 in a fight over it. Anything involving money like that in  
3 prison, as you well know, could result in violence. And  
4 that's another reason why restitution avoidance can be  
5 harmful to the institution. So, those are all things that  
6 concern us, uh, when it comes to your institutional  
7 adjustments. So, overall, currently it's rated as  
8 aggravating, but that can change by your next hearing. Um,  
9 we generally are looking for three to five years of what  
10 we call clean time, depending on somebody's record. Um,  
11 you're not there yet, but you can get there by your next  
12 hearing. Then we look at self-help programming. Um, as I  
13 said, there is some concern about the number of hours that  
14 you've put in on programs you've been enrolled in,  
15 notwithstanding the ones you weren't available for and  
16 also your ability to, uh, speak to those issues. For  
17 example, when I brought up criminal thinking, you said,  
18 well, it's not following the rules and it's committing  
19 other crimes. Those are criminal acts. That's, that's not  
20 criminal thinking. You need to do a little deeper dive on  
21 that. It's much broader than that. The best definition  
22 I've ever heard is someone say, you know the difference  
23 between right and wrong and you still choose to do wrong.  
24 That choice, that thinking, is criminal thinking. It

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1 doesn't have to be a crime. Choosing to lie, choosing to  
2 minimize. And unfortunately for you, you did minimize in  
3 the Risk Assessment. I did appreciate today, I think you  
4 were much more honest about your gang activity, much more  
5 honest about your phone activity than you were in 2022,  
6 but still that was still September 2022 that you were  
7 willing to lie about those things. And then today, I would  
8 like to give you the benefit of the doubt and say, well,  
9 you just couldn't remember everybody that maybe put money  
10 on your books with somebody else. But I also think that  
11 your hope was maybe they don't know about it, maybe they  
12 can't find this out. And that's always problematic 'cause  
13 that's evidence of criminal thinking today. Whether it was  
14 intentional or whether you just are nervous and you didn't  
15 remember that, that's something you should have prepared  
16 for. It's common knowledge now amongst the population that  
17 the Board takes restitution avoidance seriously. And so,  
18 if you've been involved in it, what I tell people is put  
19 it up front. You listed all this stuff. You gave us over  
20 60 pages of writings. Put it in there. Say I recognize  
21 that I was involved in restitution avoidance, do the  
22 thinking ahead of time, I used this person, this person,  
23 this person. The last time I did it was this time. I now  
24 recognize it's wrong for these reasons. That would make us

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1 feel much better today about your testimony. But as it is,  
2 like I told you at the very beginning, as soon as you  
3 start losing credibility, it's difficult for us to weigh  
4 everything that you say because it bears on all the rest  
5 of your testimony. So, at this time, we find that your  
6 programming is neutral. You, you've been doing the right  
7 programs for the right reasons. Um, I think if you do some  
8 more 12 step programming certainly is good. Certainly  
9 something for healthy relationships because we see in your  
10 history a series of women that have been involved with  
11 you, in prison at least four over the last eight years.  
12 Um, and you know, we have to wonder, okay, is that because  
13 you don't know how to maintain a healthy relationship? Is  
14 that because you're just using them for what you can get  
15 from them? We don't know. But what we'd like to see before  
16 you're released is that you have a good sense of healthy  
17 relationships because what you talked to me about, you  
18 have to go back and read the transcript, but if you do  
19 some work, you said you read self-help books, you read  
20 books on codependency, what you'll see in your answer is  
21 that if a relationship is about I need someone to need me  
22 or they need me to help them, that can be problematic.  
23 Individuals have to be independently secure in who they  
24 are before they can have a healthy relationship with each

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1 other. And it's not your fault. You never had that model  
2 for you. And so, I think learning about it would be  
3 helpful to you. Also, any other programmings involved with  
4 criminal thinking because of the reasons I stated before.  
5 So, those are all three areas you can do more work in  
6 healthy relationships, recovery, codependency, criminal  
7 thinking. And then we get to offender change. Again, we  
8 have seen some offender change in you. It's evident you're  
9 doing the right things. But at this time, we find that to  
10 be neutral as well. You can't say that it's mitigating  
11 though because as I said, there are issues with your  
12 testimony today, issues with your behavior through 2022.  
13 And I, I would agree with your Attorney that you started  
14 the maintenance phase, but you have to understand what our  
15 position is. It's not just whether someone understands  
16 they need to change and has started. It's whether or not  
17 their pro-social values are entrenched to the degree that  
18 it's going to remain permanent. Part of the problem is,  
19 like I said, not your crime of 26 years ago when you were  
20 19 years old, but your ongoing criminality all the way up  
21 through a couple years ago. So, that's what we have to be  
22 certain is not going to resurface if you're released. And  
23 so, we want to see you live out, um, what you profess, uh,  
24 on a consistent basis. But we think you can get there by

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1 your next hearing even with a minimal denial. And then we  
2 look at your, um, CRA, obviously it's a high, we think you  
3 have mitigated in some respects. Uh, like I said, you were  
4 more honest today about the, uh, gang involvement through  
5 2020. You were more honest about your, uh, narcotics and  
6 use of the phones. Um, you weren't minimizing at all about  
7 the life crime, which I appreciated because I felt you did  
8 that as well in the Risk Assessment. Um, so that does show  
9 growth on your part. Uh, but again, I wish you would've  
10 been upfront about the restitution at the very beginning  
11 'cause it's not like I tricked you. I told you upfront we  
12 wanted transparency, and then I gave you three shots at  
13 it. So, anyway, um, but that's not the only reason we're  
14 denying you today. If that was the only thing that you had  
15 on your record, we might be able to talk around that and  
16 where you're at. But you have all of these other things  
17 all the way through 2021. And like I told you before, it's  
18 not just knowing what you did was wrong. A lot of people  
19 come in and say, I take personal responsibility. It's  
20 showing us that you can live your life in a way that  
21 avoids any kind write-ups, any kind of anti-authority, any  
22 kind of criminal thinking for a steady enough period that  
23 we think, okay, if we let him out, take a chance on him,  
24 he's not going to go back to drug dealing. He's not going

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1 to go back to drug use, he's not going to go back to  
2 criminality. So, um, we think you can get there though.  
3 But at this time, the aggravating factors do outweigh the  
4 mitigating factors. But there are mitigating factors. The  
5 law actually requires us to start at 15 or 10 years in a  
6 denial length. We have to find clear and convincing  
7 evidence why that's not warranted. In your case, there's  
8 no question in my mind that the youth offender factors  
9 apply. You were 18, 19 or 19, 20 at the time. You  
10 certainly had a dysfunctional childhood through no fault  
11 of your own. Um, you certainly had negative peer  
12 associations and family associations that impacted you in  
13 a negative way. You had numerous encounters with law  
14 enforcement that didn't deter your behavior whatsoever. If  
15 anything, you probably got positive strokes from the gang  
16 members every time you went into custody. That's not a  
17 good thing. You definitely were reckless. You didn't think  
18 about the consequences, you didn't think about other  
19 people. Those are all hallmark features of youth. Um, and  
20 you, you recognize that today. So, we appreciate this.  
21 This isn't a situation where we think, gee, he doesn't  
22 understand who he was at the time. The problem is you  
23 continued to be that person for a long time beyond 26  
24 years of age, which is when science tells us your brain

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1 should have been fully matured and you should have  
2 recognized what you were doing was self-defeating and  
3 moved on from it, but you kept doing it till you were at  
4 least 40 or more. So, on the growth and maturity aspect of  
5 it, we can't give as much weight as we otherwise would  
6 because of that ongoing criminality beyond the age of 26,  
7 but still, with the first two categories, the age and  
8 undeveloped brain function as well as the, um, hallmark  
9 features of youth, we think that is clear and convincing  
10 evidence that 15 or 10 years is not warranted. And then  
11 quite frankly, it's our discretion whether we deny you for  
12 seven, five, or three. Usually, what we look at is how  
13 sincere the person is in the hearing, how recent is their  
14 misbehavior. You have, giving you the benefit of doubt  
15 that December 2022 would've been the last time you, uh,  
16 engaged in criminal behavior, that's two years. That's  
17 still a good start. So, we give you credit for that. We  
18 also give you, uh, credit for the fact that you've taken  
19 the programming, that you are doing the things that will  
20 help you change, like the dog program and the ADA worker.  
21 And we see you get positive work reviews on those jobs.  
22 You did not get positive in your kitchen job, but that's  
23 when you were still doing stuff that was wrong. So, we—

24 **CALVIN WALKER:** Yes.

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**PRESIDING COMMISSIONER BARTON:**

We do recognize

that that is pro-social, that you've developed a work ethic. Now you've developed ability to think of others besides yourself and that's a good thing. So, that's also a mitigating factor. Plus with your pro-social behavior as far as getting your education, we know that statistically reduces recidivism. That convinced us that seven, um, or five years is not necessary. We think that to get where you need to be, it's three years. But there's two ways to approach this decision. One would be a defeating self-fulfilling prophecy. Look at all the great stuff I've gone, go out and make excuses to all of your family and friends. Oh, they were unfair and, and I should have been granted. And then that becomes a self-fulfilling prophecy that down the road, doesn't help you very much. Or you go back when you get the transcript, you read through it, you reapply yourself to the programming as we're telling you. You continue to work on your parole plans. Your parole plans are mitigated. There are people out there that want to support you. You do, you have developed some marketable skills. That's another area of mitigation. Your mental health issues, you stabilized. It sounds like you've got that understood. You know when to ask for help. You know what the warning signs are, but this is going to be a test

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1 for you. A lot of people that have mental health  
2 challenges, especially with depression, when they're  
3 denied, they go into a downward spiral. And what that  
4 tells us is they were nowhere near ready because they  
5 weren't able to handle the disappointment. But the second  
6 way to handle a denial is to redouble your efforts, do  
7 everything we're telling you to do, continue to stay on  
8 track. And then the odds are that next time you come back  
9 and you demonstrate that and your record demonstrates  
10 that, you can be a relatively easy grant. But that's up to  
11 you. So, this decision is not final. It does get reviewed.  
12 Um, if something changes, you'd be notified in writing.  
13 You do have the ability to petition to advance once within  
14 the next three years. Um, I'm going, it has to be a joint  
15 decision. I'm going to ask the Deputy Commissioner if he  
16 concurs and if he has anything he'd like to add.

17 **DEPUTY COMMISSIONER WEILBACHER:** I have no  
18 comments, but I do join in this decision. Thank you, sir.

19 **PRESIDING COMMISSIONER BARTON:** All right. You  
20 will be getting the decision, as I said, and a copy of the  
21 transcript. Um, it is 10:58 a.m. and we are adjourned on  
22 this case. Thank you, everyone, for your participation.  
23 Mr. Stein, uh, we'll see you next time. Ms. Benyarku, how  
24 much time do you need to talk to your next client?

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1       **ATTORNEY BENYARKU:** I've already spoken to him during  
2 the—

3       **PRESIDING COMMISSIONER BARTON:**       Okay. All right.  
4 So, the DA—

5                                   **ADJOURNMENT**

6 THIS TRANSCRIPT CONTAINS THE PROPOSED DECISION OF THE  
7 BOARD OF PAROLE HEARINGS (BOARD) ANNOUNCED AT YOUR RECENT  
8 BOARD HEARING AND IS PROVIDED TO YOU IN COMPLIANCE WITH  
9 PENAL CODE SECTION 3041.5, SUBDIVISION (A) (4), AND  
10 CALIFORNIA CODE OF REGULATIONS, TITLE 15, SECTION 2254.  
11 THIS PROPOSED DECISION WILL BECOME FINAL WITHIN 120 DAYS  
12 OF THE DATE OF THE HEARING AS REQUIRED BY PENAL CODE  
13 SECTION 3041, SUBDIVISION (B), UNLESS THE BOARD NOTIFIES  
14 YOU IN WRITING BEFORE THEN THAT THE PROPOSED DECISION HAS  
15 BEEN MODIFIED, VACATED OR REFERRED TO THE FULL BOARD,  
16 SITTING EN BANC, DUE TO AN ERROR OF LAW, ERROR OF FACT OR  
17 NEW INFORMATION PURSUANT TO CALIFORNIA CODE OF  
18 REGULATIONS, TITLE 15, SECTION 2042. THEREAFTER, THE  
19 GOVERNOR HAS AUTHORITY TO REVIEW THE BOARD'S DECISION AND  
20 AFFIRM, MODIFY, OR REVERSE IT PURSUANT TO PENAL CODE  
21 SECTIONS 3041.1 AND 3041.2.  
22  
23  
24

25       **CALVIN WALKER       P74172       01/29/2025       DECISION PAGE 15**

**CERTIFICATE AND DECLARATION OF TRANSCRIBER**

I, Hanin Yaseen, am a disinterested party, and have no interest in the outcome of the hearing. Further, I certify this transcript is a true, complete, and accurate record, to the best of my ability, of the recorded material provided for transcription of proceeding for:

In the matter of the Parole  
Consideration Hearing of:

CDCR Number: **P74172**

**CALVIN WALKER**

CALIFORNIA STATE PRISON, LOS ANGELES COUNTY

LANCASTER, CALIFORNIA

JANUARY 29, 2025

8:32 AM

Signed: *Hanin Yaseen*

Transcribed by: Hanin Yaseen

Dictate Express Transcription

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